American Postal Workers Union

2022 Pre-Convention Workshop

RESEARCH & EDUCATION DEPARTMENT

ARTICLE 37 DUTY ASSIGNMENTS AND MDAT POST DAS AWARD

LAMONT BROOKS – CLERK DIVISION DIRECTOR
PETE CORADI – NEW YORK REGION, NBA
VICKI CARIOS – DENVER REGION NBA
ASHLEY CARGILL – WICHITA REGION NBA
PAMELA SMITH – MEMPHIS REGION NBA



AMERICAN POSTAL WORKERS UNION, AFL-CIO



Mark Dimondstein
President



Debby Szeredy
Vice President



Elizabeth Powell
Secretary/Treasurer

Sponsored by the APWU Research and Education Department



Joyce B. Robinson
Director

CLERK DIVISION RESIDENT OFFICERS

CLERK DIVISION RESIDENT OFFICERS

DIRECTOR



Lamont Brooks

ASSISTANT DIRECTORS



Lynn Pallas-Barber



Sam Lisenbe

Clerk Division Class Instructors



Lamont Brooks
Clerk Division Director



Pete Coradi
NBA, New York Region



Vicki Carios
NBA, Denver Region



Ashley Cargill
NBA, Wichita Region



Pamela Smith
NBA, Memphis Region

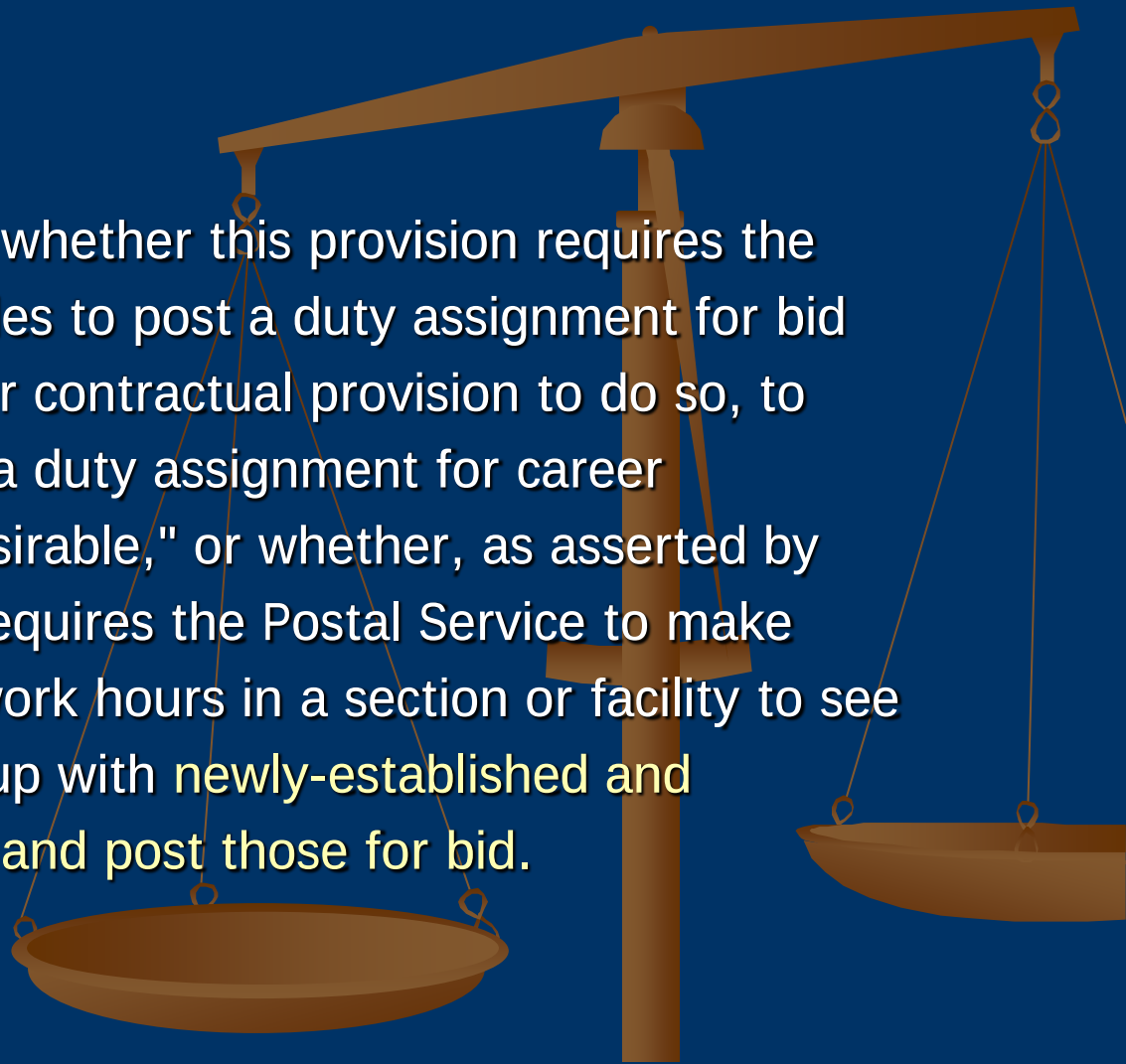
ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)

This interpretive dispute was referred to the national level by the Postal Service.

The dispute involves the meaning of the sentence: "Every effort will be made to create desirable duty assignments from all available work hours for career employees to bid." This sentence was added to Article 37, Section 3.A.1 of the National Agreement in the 2010-2015 National Agreement.

Note: The content of all slides in this presentation with the "Arbitrator Das Heading" was taken directly from the Das arbitration award.

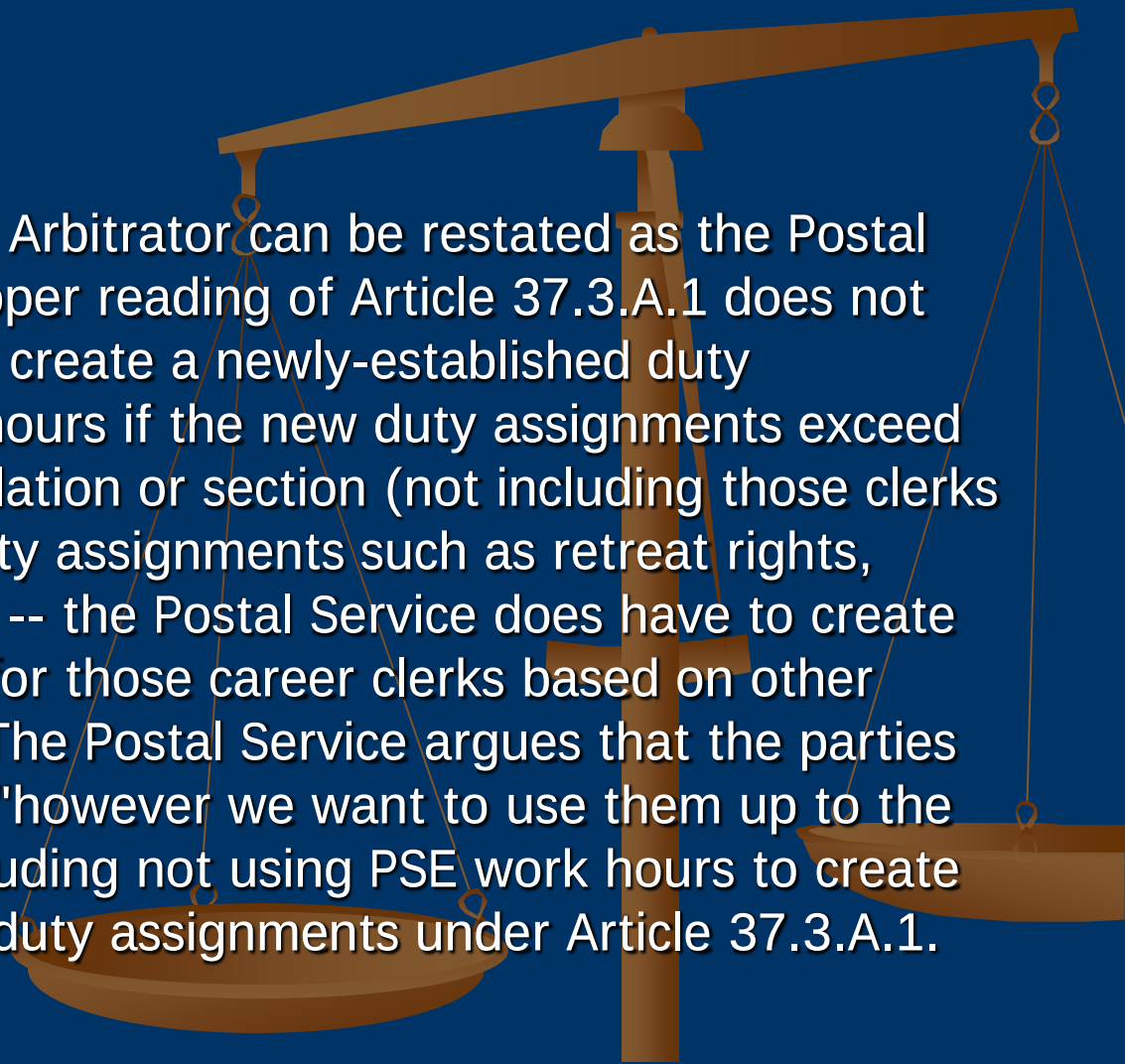
ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



The Postal Service asserts:

The basic issue in dispute is whether this provision requires the Postal Service, when it decides to post a duty assignment for bid or is obligated by some other contractual provision to do so, to make every effort to create a duty assignment for career employees to bid that is "desirable," or whether, as asserted by the Union, Article 37.3.A.1 requires the Postal Service to make every effort to explore the work hours in a section or facility to see if it can operationally come up with newly-established and additional duty assignments and post those for bid.

ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



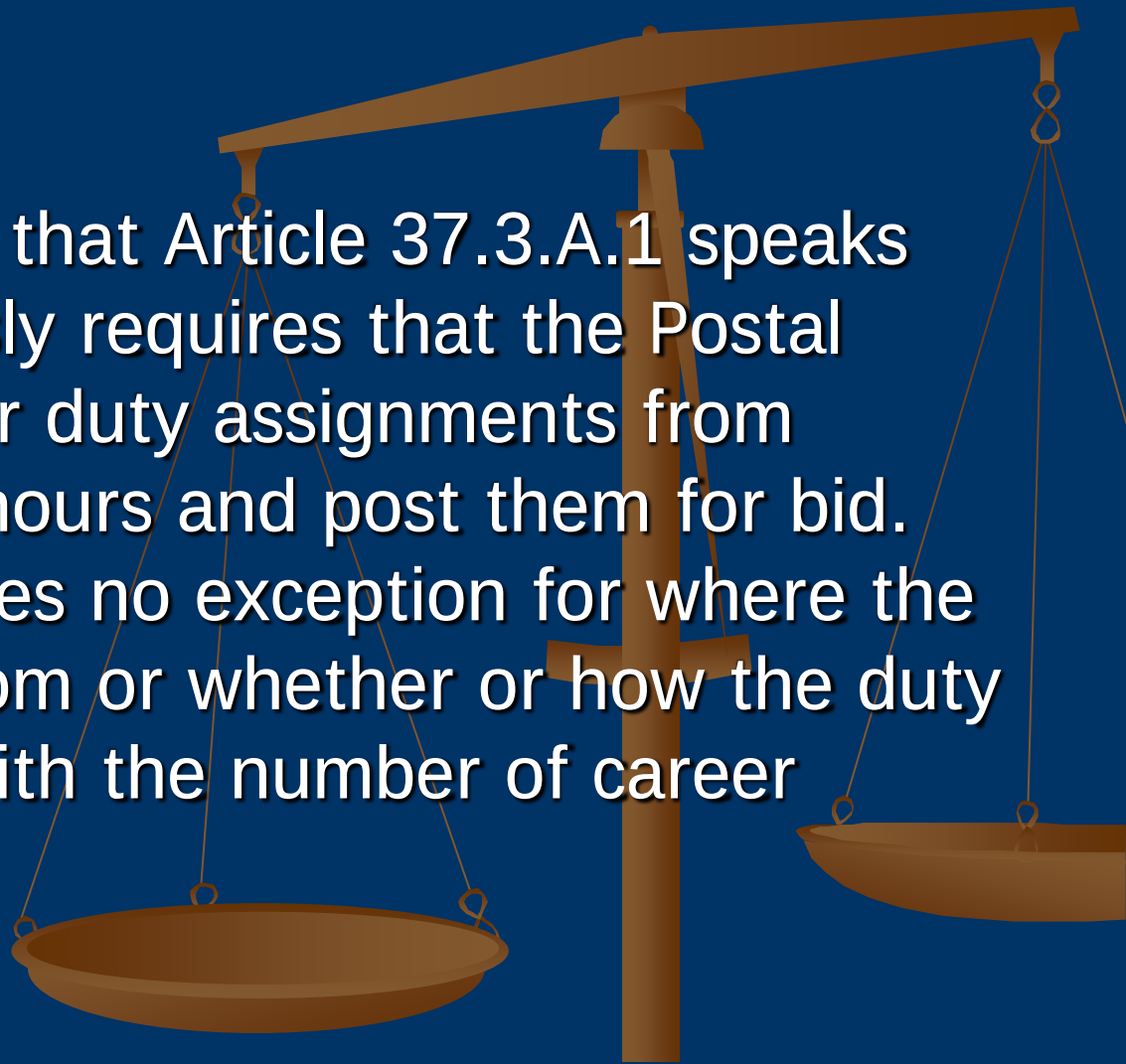
The Union states:

The narrow issue before the Arbitrator can be restated as the Postal Service claiming that the proper reading of Article 37.3.A.1 does not require the Postal Service to create a newly-established duty assignment from PSE work hours if the new duty assignments exceed the career clerks in an installation or section (not including those clerks with contractual rights to duty assignments such as retreat rights, maximization or withholding -- the Postal Service does have to create desirable duty assignments for those career clerks based on other provisions of the contract). The Postal Service argues that the parties agreed that it can use PSEs "however we want to use them up to the negotiated percentage," including not using PSE work hours to create newly-established desirable duty assignments under Article 37.3.A.1.

ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)

Moreover:

The Union contends that Article 37.3.A.1 speaks for itself – it expressly requires that the Postal Service create career duty assignments from available PSE work hours and post them for bid. Article 37.3.A.1 makes no exception for where the work hours come from or whether or how the duty assignments align with the number of career clerks.



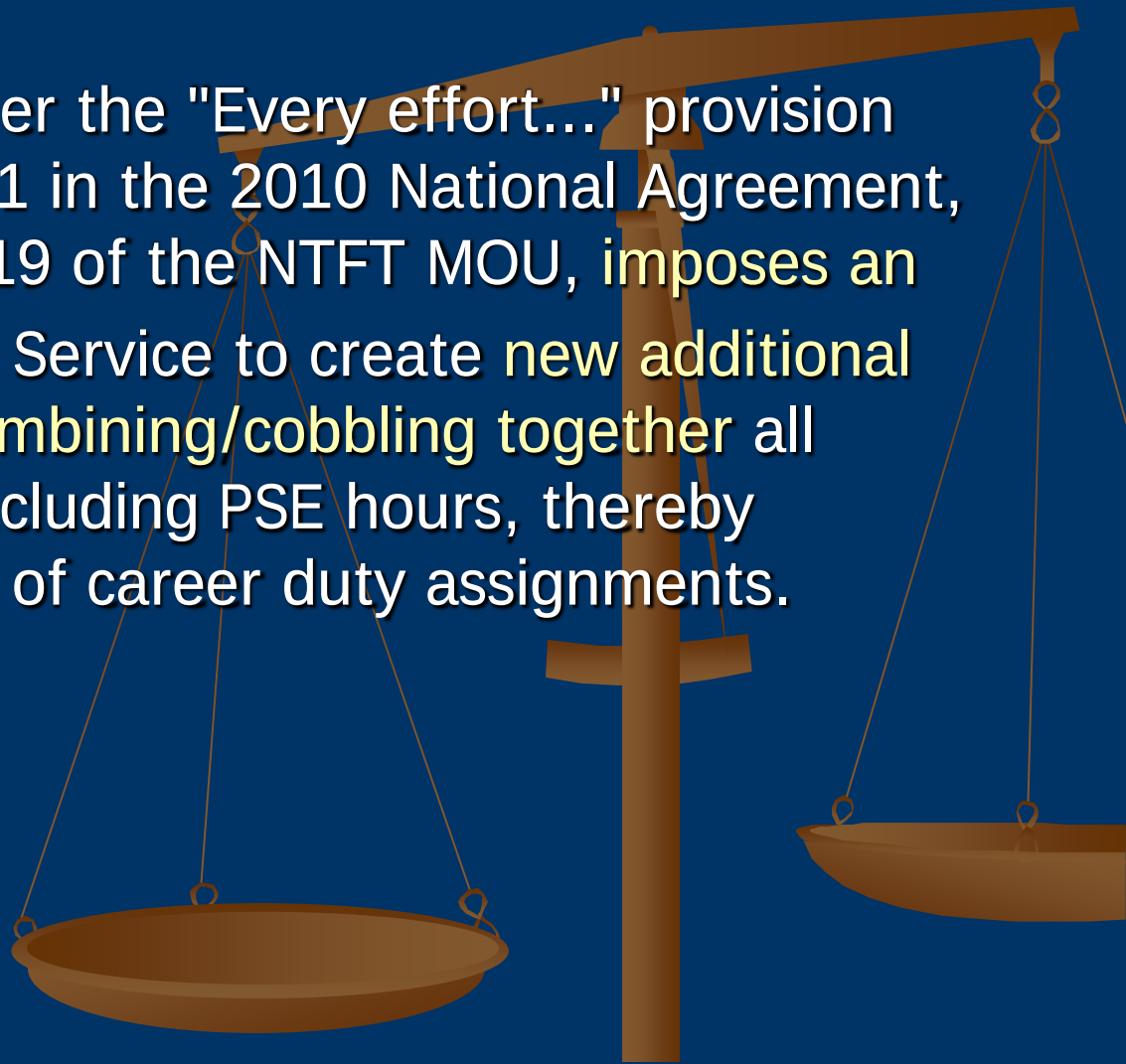
ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)

Article 37.3.A addresses posting of newly established and vacant Clerk Craft duty assignments. As a general matter, the Postal Service has the right under Article 3 to determine whether and when to establish a new duty assignment. Like all management rights, this right is subject to other provisions of the CBA. These include provisions requiring posting of new assignments in *Article 7.1.B.6 (hours worked by a PSE on the window), Article 7.3.C (PTF conversion) and Article 37.4.D (unencumbered Clerks). Under Article 37.3.A.1, the Postal Service is required to post vacant duty assignments unless the duty assignment has been reverted.

Note: Article 7.1.B.6 in 2018 Collective Bargaining Agreement

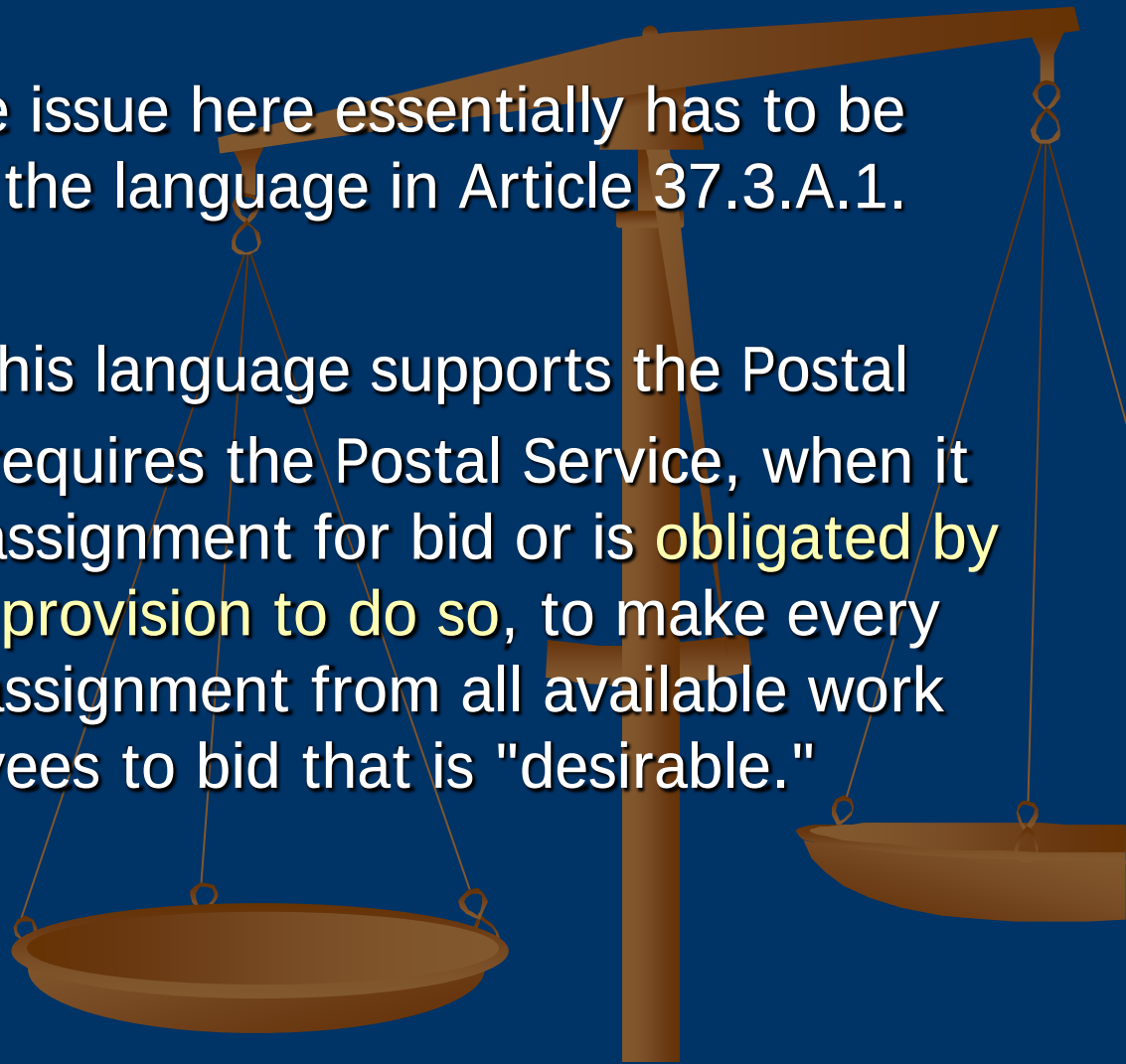
HINT: THE UNION WILL PROVIDE FURTHER PROVISIONS

ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



The issue here is whether the "Every effort…" provision added to Article 37.3.A.1 in the 2010 National Agreement, pursuant to paragraph 19 of the NTFT MOU, imposes an obligation on the Postal Service to create new additional duty assignments by combining/cobbling together all available work hours, including PSE hours, thereby maximizing the number of career duty assignments.

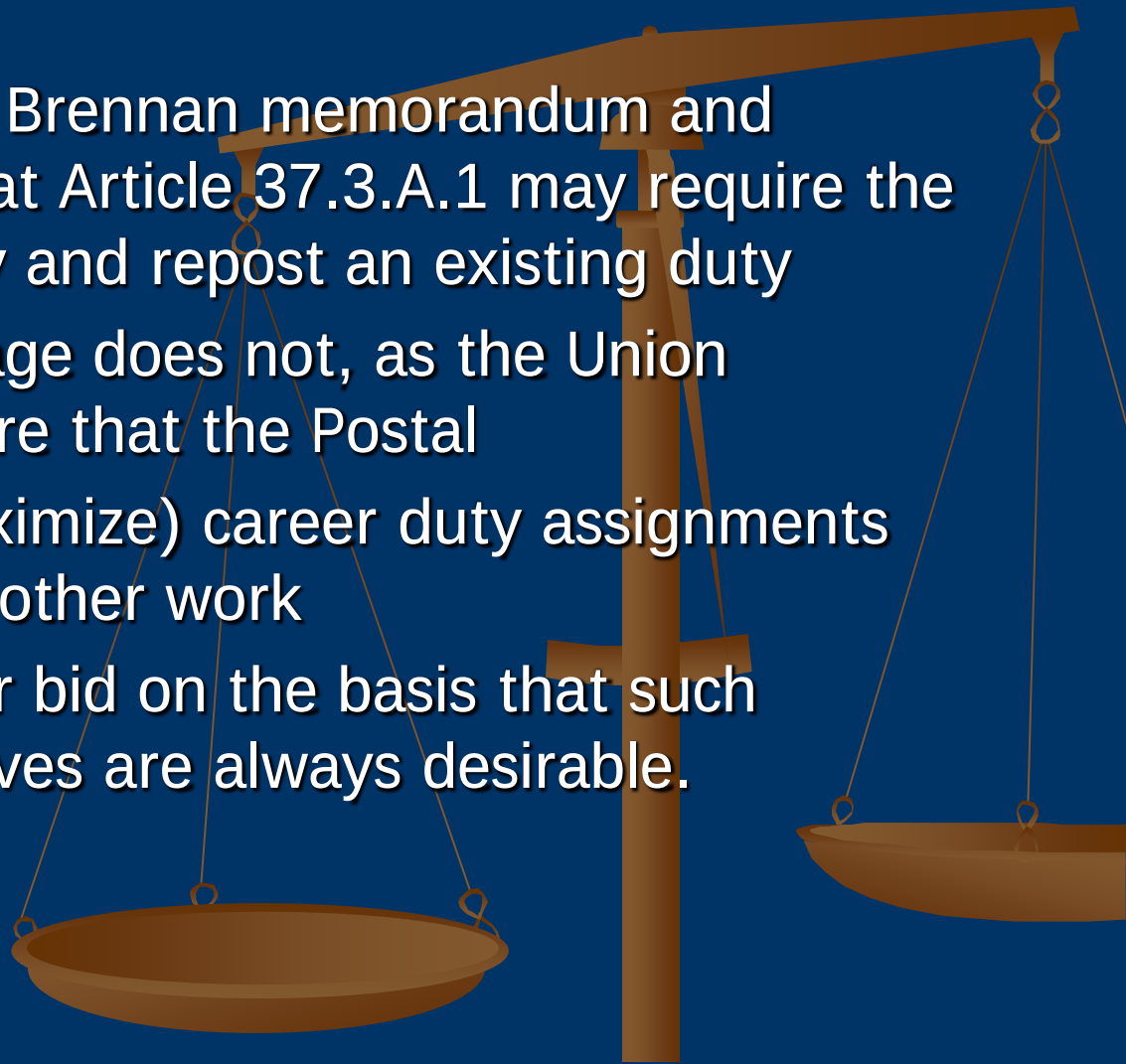
ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



In the final analysis, the issue here essentially has to be decided on the basis of the language in Article 37.3.A.1.

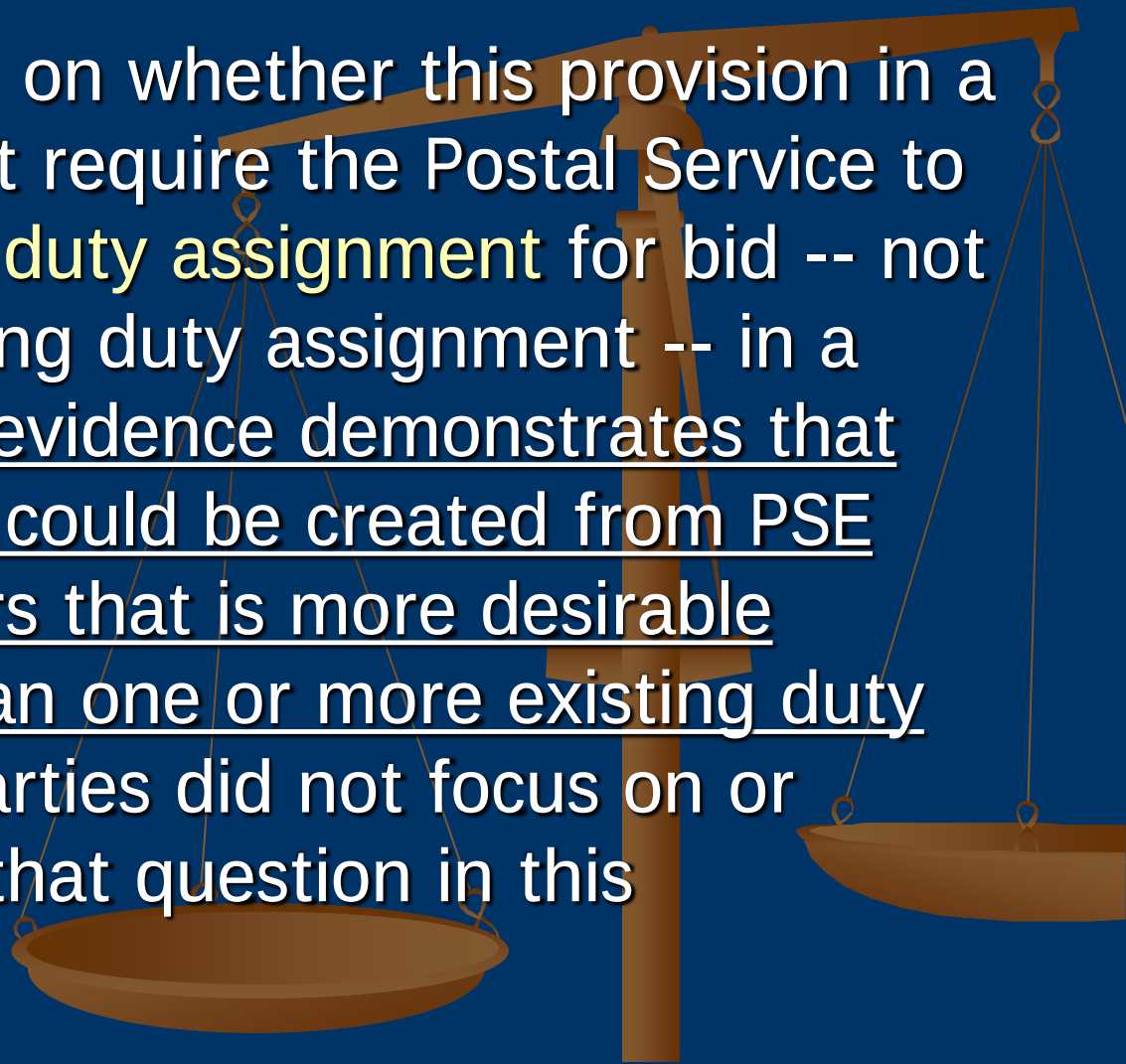
When read in context, this language supports the Postal Service position that it requires the Postal Service, when it decides to post a duty assignment for bid or is obligated by some other contractual provision to do so, to make every effort to create a duty assignment from all available work hours for career employees to bid that is "desirable."

ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



It is also clear from the Brennan memorandum and accompanying Q&As that Article 37.3.A.1 may require the Postal Service to modify and repost an existing duty assignment. The language does not, as the Union contends, broadly require that the Postal Service create (and maximize) career duty assignments from available PSE and other work hours and post them for bid on the basis that such assignments in themselves are always desirable.

ARBITRATOR DAS
Case No. Q15C-4Q-C 18148486
(Duty Assignments)



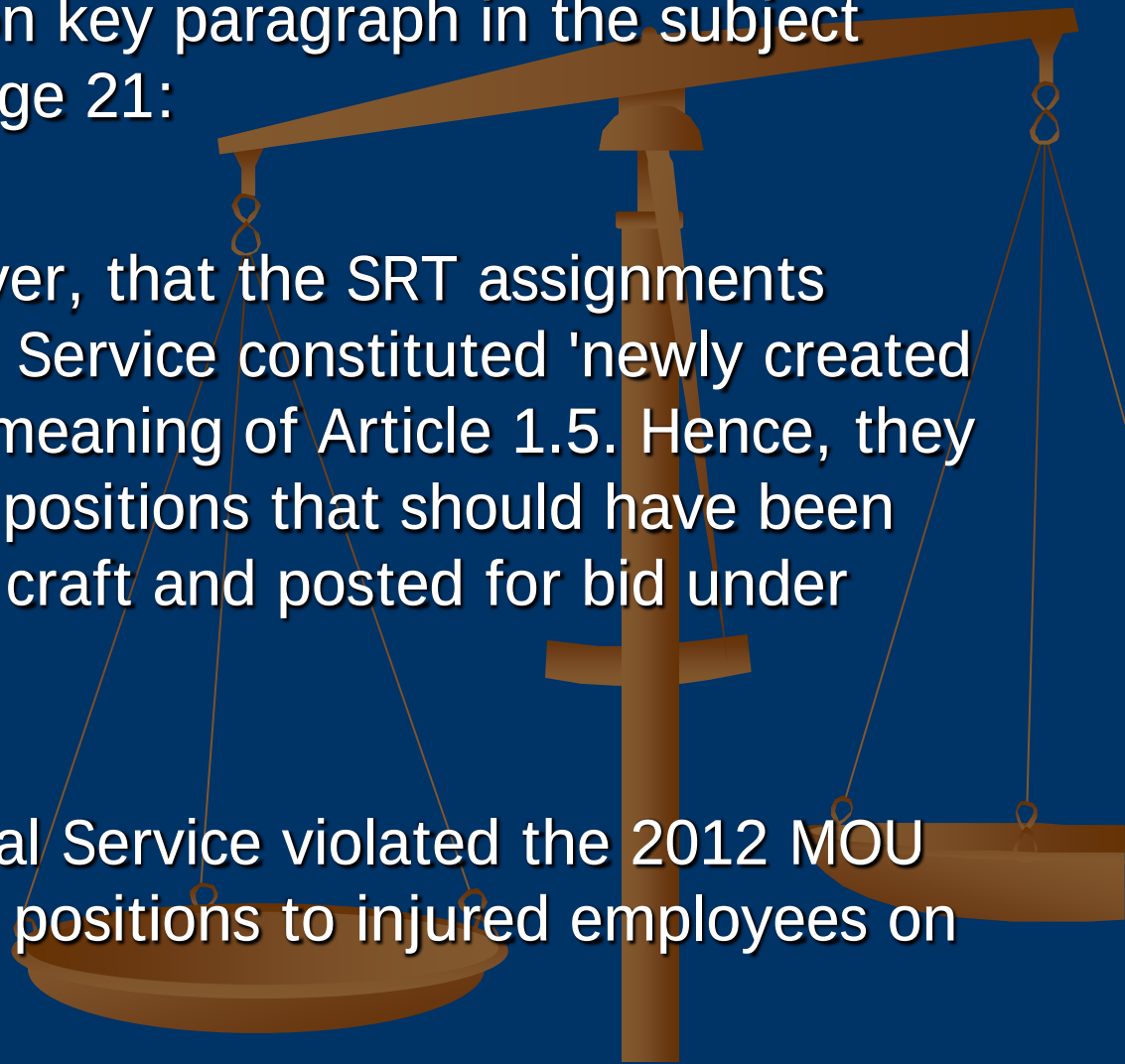
I express no opinion on whether this provision in a particular case might require the Postal Service to create an additional duty assignment for bid -- not just modify an existing duty assignment -- in a situation where the evidence demonstrates that such an assignment could be created from PSE and other work hours that is more desirable (hours/schedule) than one or more existing duty assignments. The parties did not focus on or sufficiently address that question in this proceeding.

Goldberg Sales Retention Team (SRT) Pilot Dispute, Q10C-4Q-C 14011344
ARTICLE 1. SECTION 5 NEW POSITIONS

- The Goldberg Decision key paragraph in the subject award appears on page 21:

- "I have found, however, that the SRT assignments created by the Postal Service constituted 'newly created positions' within the meaning of Article 1.5. Hence, they were bargaining unit positions that should have been assigned to the clerk craft and posted for bid under Article 37.3.A.1.

- Accordingly, the Postal Service violated the 2012 MOU by assigning the SRT positions to injured employees on the OWCP rolls".

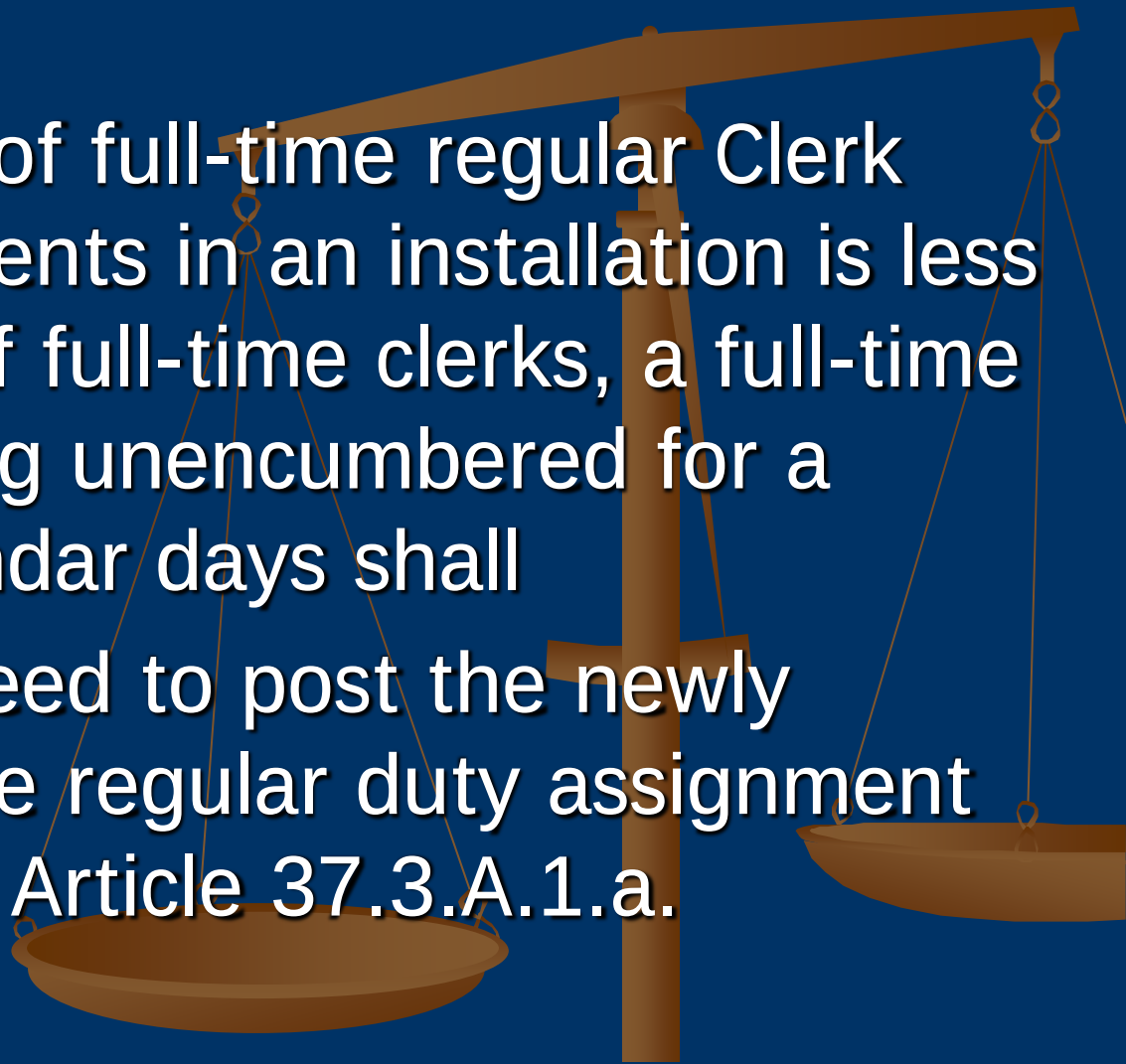


DUTY ASSIGNMENTS

- NATIONAL DAS AWARD, JULY 24, 2020
- A LOT OF TOOLS IN THE ARSENAL
- ARTICLE 37.3.A.1
- STRATEGY
- ARTICLE 7.1.B.6; ARTICLE 7.3.B; NTFT MOU, ARTICLE 1.5, ARTICLE 12.5.B.2
- ARTICLE 12, ARTICLE 13, NTFT MOU



ARTICLE 37.4.D.
Identification of Newly Established Duty Assignments



When the number of full-time regular Clerk Craft duty assignments in an installation is less than the number of full-time clerks, a full-time employee remaining unencumbered for a period of 120 calendar days shall

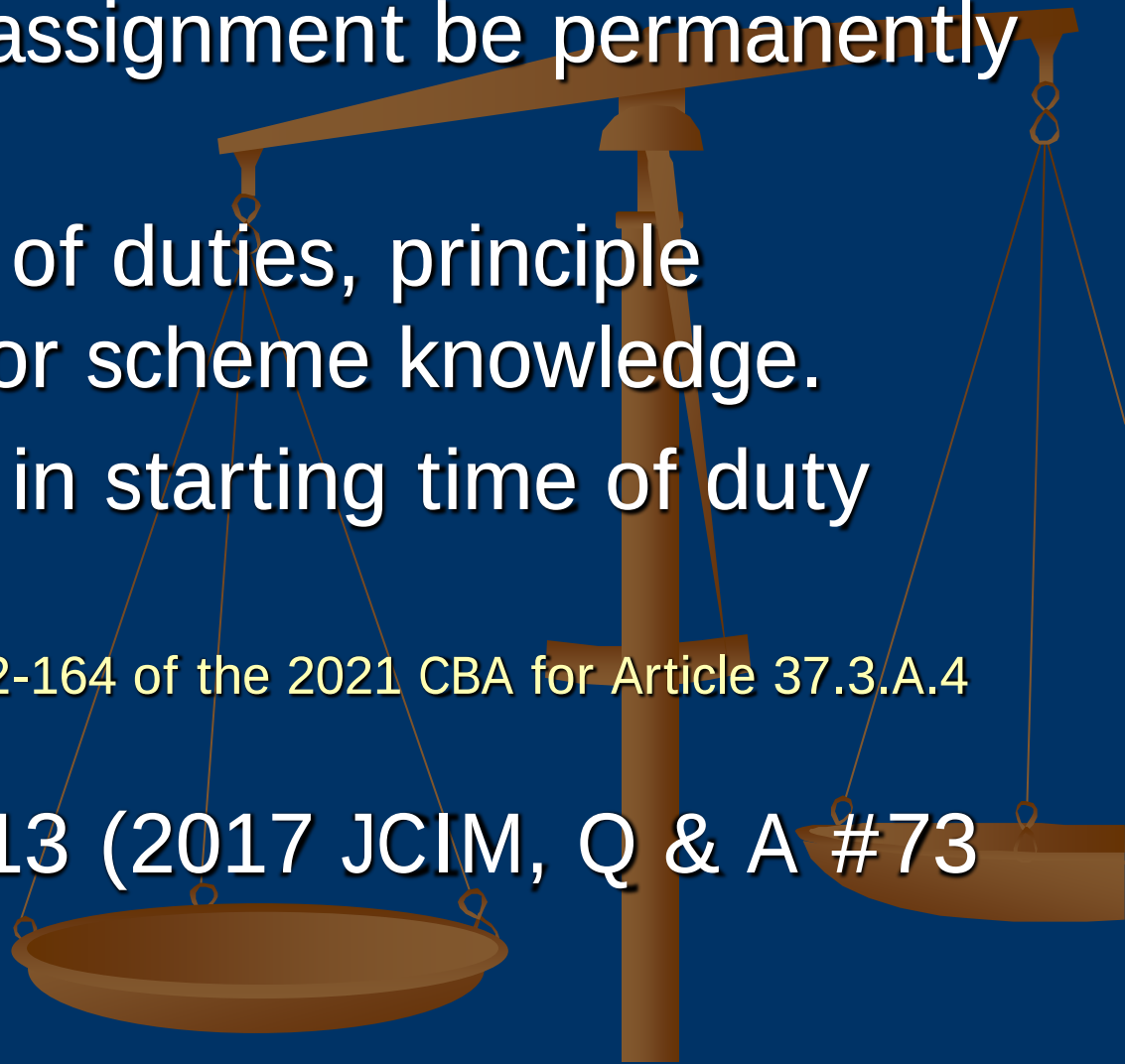
demonstrate the need to post the newly established full-time regular duty assignment in accordance with Article 37.3.A.1.a.

ARTICLE 37.3.A.4 REPOSTING

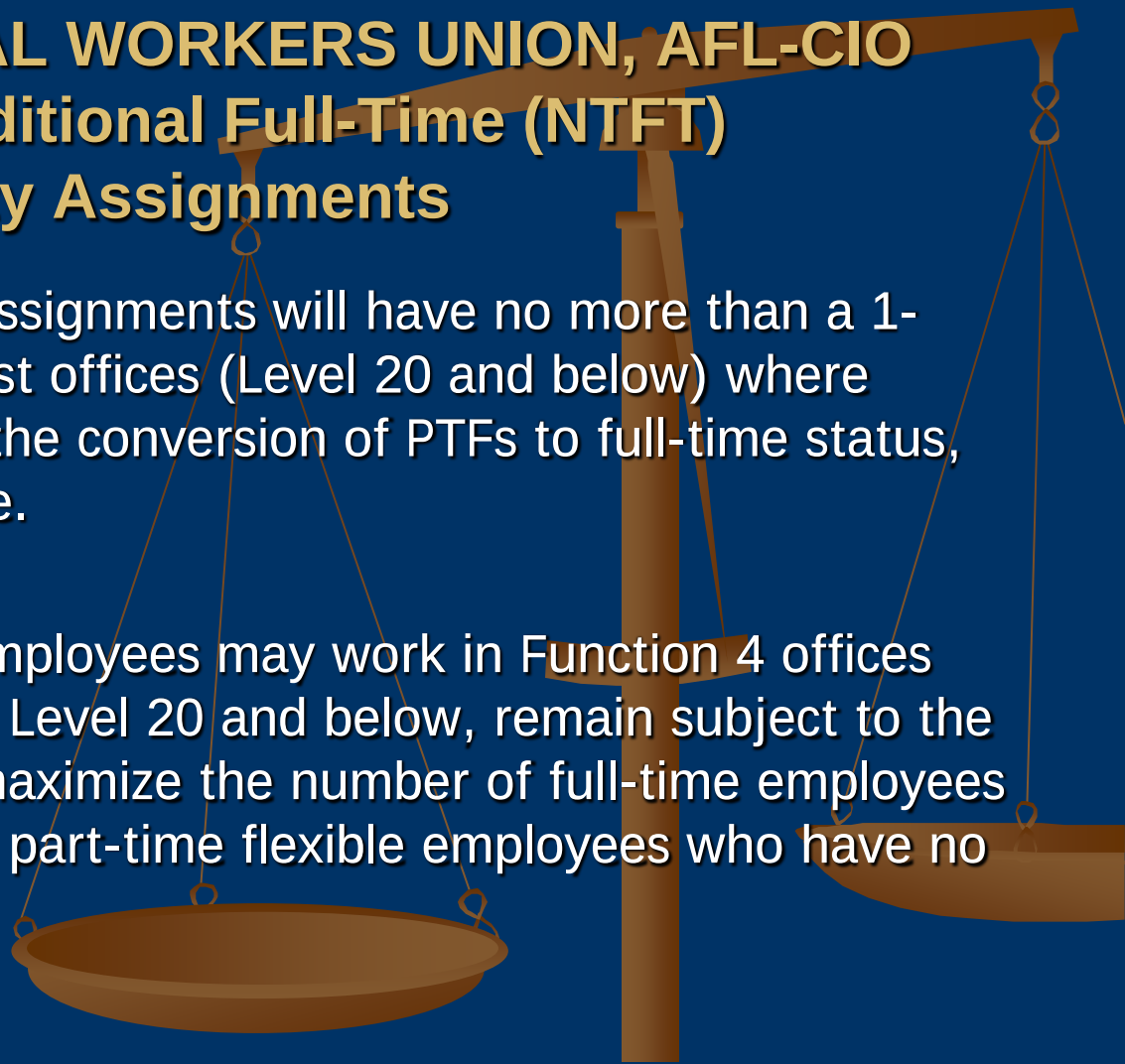
- Fixed days of an assignment be permanently changed.
- Sufficient change of duties, principle assignment area or scheme knowledge.
- Sufficient change in starting time of duty assignment.

Note: Please refer to pages 162-164 of the 2021 CBA for Article 37.3.A.4 reposting rules.

- NTFT MOU Item 13 (2017 JCIM, Q & A #73 & #80)



MEMORANDUM OF UNDERSTANDING BETWEEN THE UNITED STATES POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO Re: Non-Traditional Full-Time (NTFT) Duty Assignments



5. Non-traditional full-time assignments will have no more than a 1-hour lunch. Exception: in post offices (Level 20 and below) where necessary to accommodate the conversion of PTFs to full-time status, split shifts will be permissible.

8. Part-time flexible (PTF) employees may work in Function 4 offices Level 20 and below. Offices, Level 20 and below, remain subject to the Article 7.3.B obligations to maximize the number of full-time employees and minimize the number of part-time flexible employees who have no fixed work schedules.

MEMORANDUM OF UNDERSTANDING BETWEEN THE UNITED STATES POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO Re: Non-Traditional Full-Time Duty Assignments in Retail Operations, Level 20 and Below Offices

The parties agree that for retail operations in Level 20 and below offices, non-traditional full-time duty assignments may be created when the Union can demonstrate the need for such non-traditional duty assignments and it is economically and operationally advantageous to do so.

High Importance: This MOU is applicable specific to retail offices where there are NO carrier operations. In ALL other cases you should be citing the regular NTFT MOU that does not contain the economically and operational threshold. The PO-209 Handbook identifies a retail operations office as an office of retail and possible box section. Advocates are wrongly citing this MOU, even though they have prevailed in a few cases.

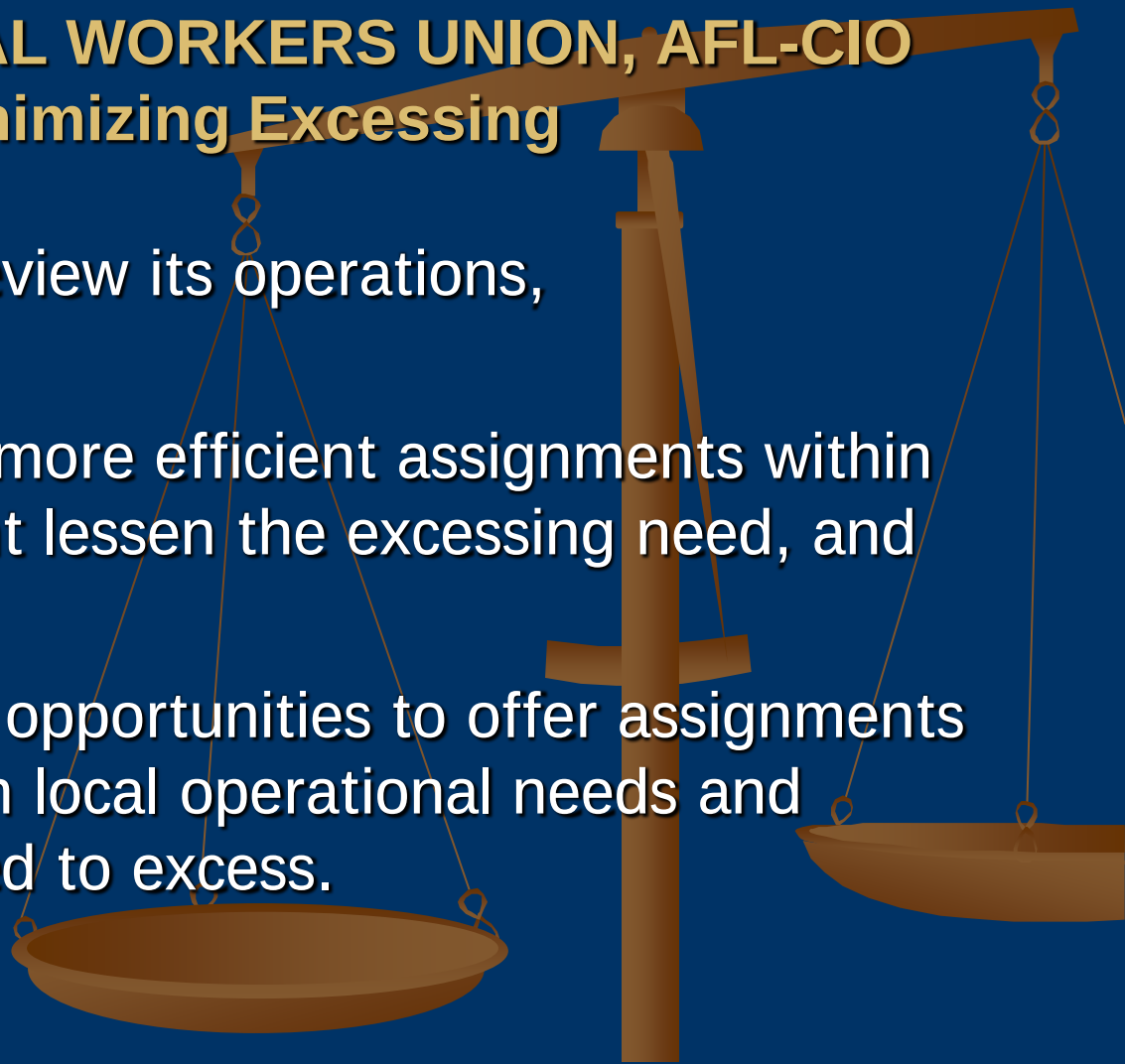
MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
Re: Article 12.5.B.2

The parties agree that Article 12.5.B.2 shall be amended to include the need to identify duty assignments within the appropriate radius currently held by PSE employees which shall be made available for the reassignment of excess career employees.

Note: National Arbitrator Goldberg Q10C-4Q-C 12320729, Article 12.5.B.2, on page 16 stated,

"This language demonstrates that the negotiators of the 2010 Agreement knew how to impose on the Postal Service the obligation to combine PSE hours when doing so would yield duty assignments for career employees. They did so for bidding purposes in Article 37.3.A.1. They also did so in the excessing situation for PSEs in the losing installation. They did not do so, however, in either the text of Article 12.5.B.2 or in the interpretation of Article 12.5.B.2 set out in the JCIM, beyond the losing installation into the entire area affected by an excessing event."

MEMORANDUM OF AGREEMENT
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
Re: Minimizing Excessing



The Postal Service will review its operations,

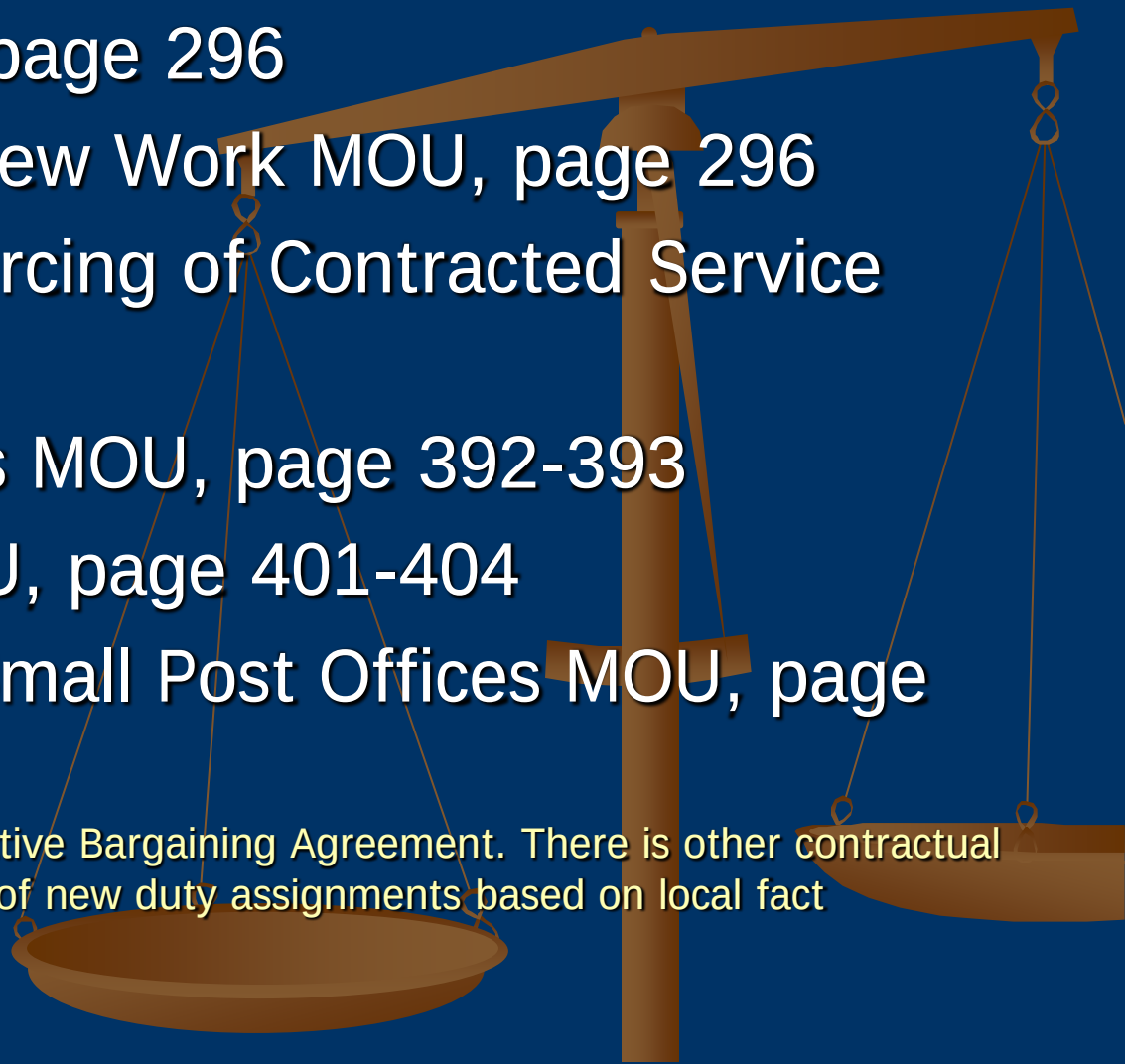
1) to create new and/or more efficient assignments within the installation that might lessen the excessing need, and

2) to look for scheduling opportunities to offer assignments which are consistent with local operational needs and reduce/eliminate the need to excess.

USPS/APWU CBA MOU'S

- Job Audits MOU, page 295
- Clerical Work MOU, page 296
- New Positions and New Work MOU, page 296
- Contracting or Insourcing of Contracted Service MOU, page 391
- Contract Postal Units MOU, page 392-393
- Clerk Craft Jobs MOU, page 401-404
- Custodial Duties in Small Post Offices MOU, page 440

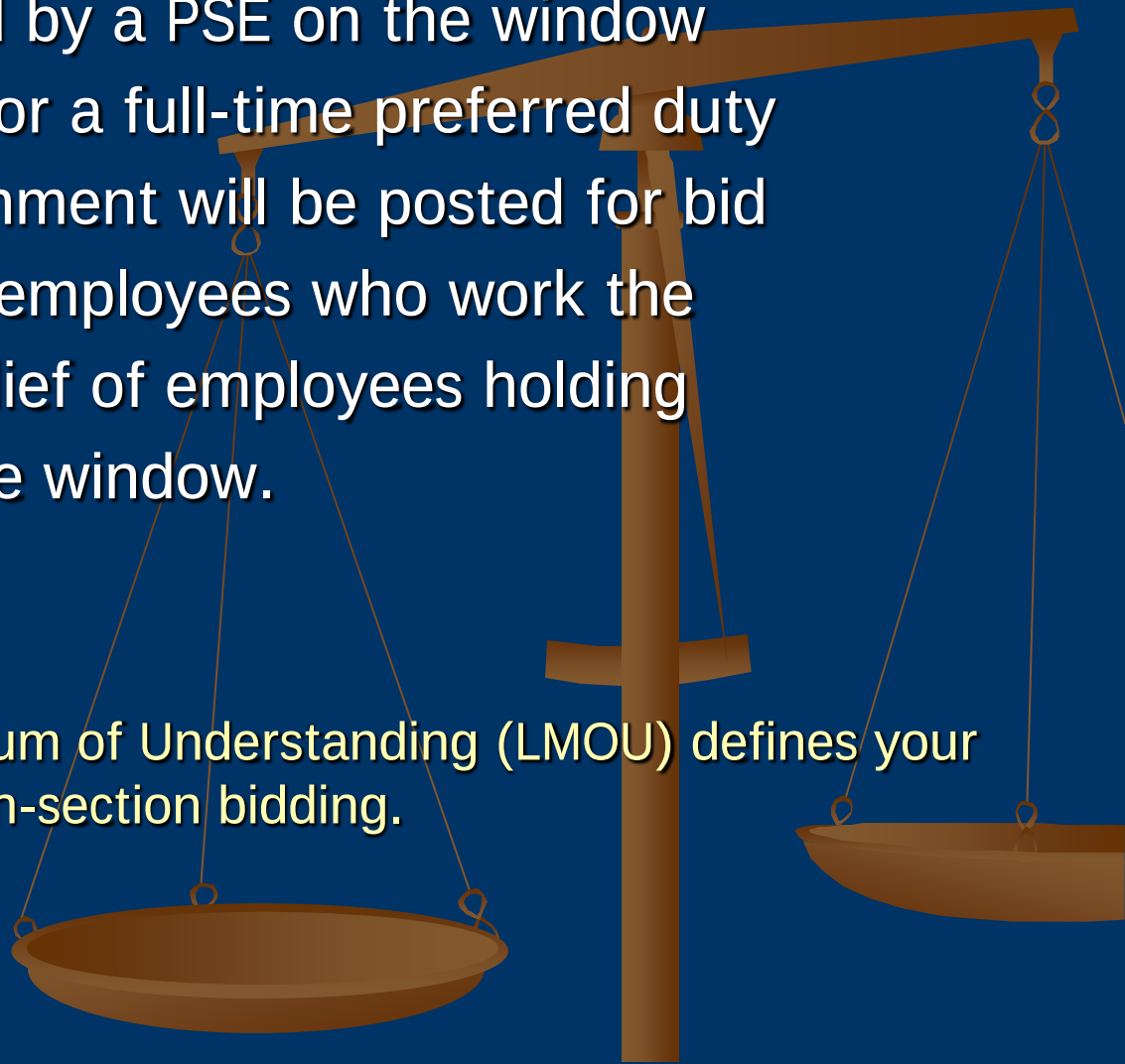
Note: Pages taken from the 2021 Collective Bargaining Agreement. There is other contractual language that may support the posting of new duty assignments based on local fact circumstances.



ARTICLE 7.1.B.5

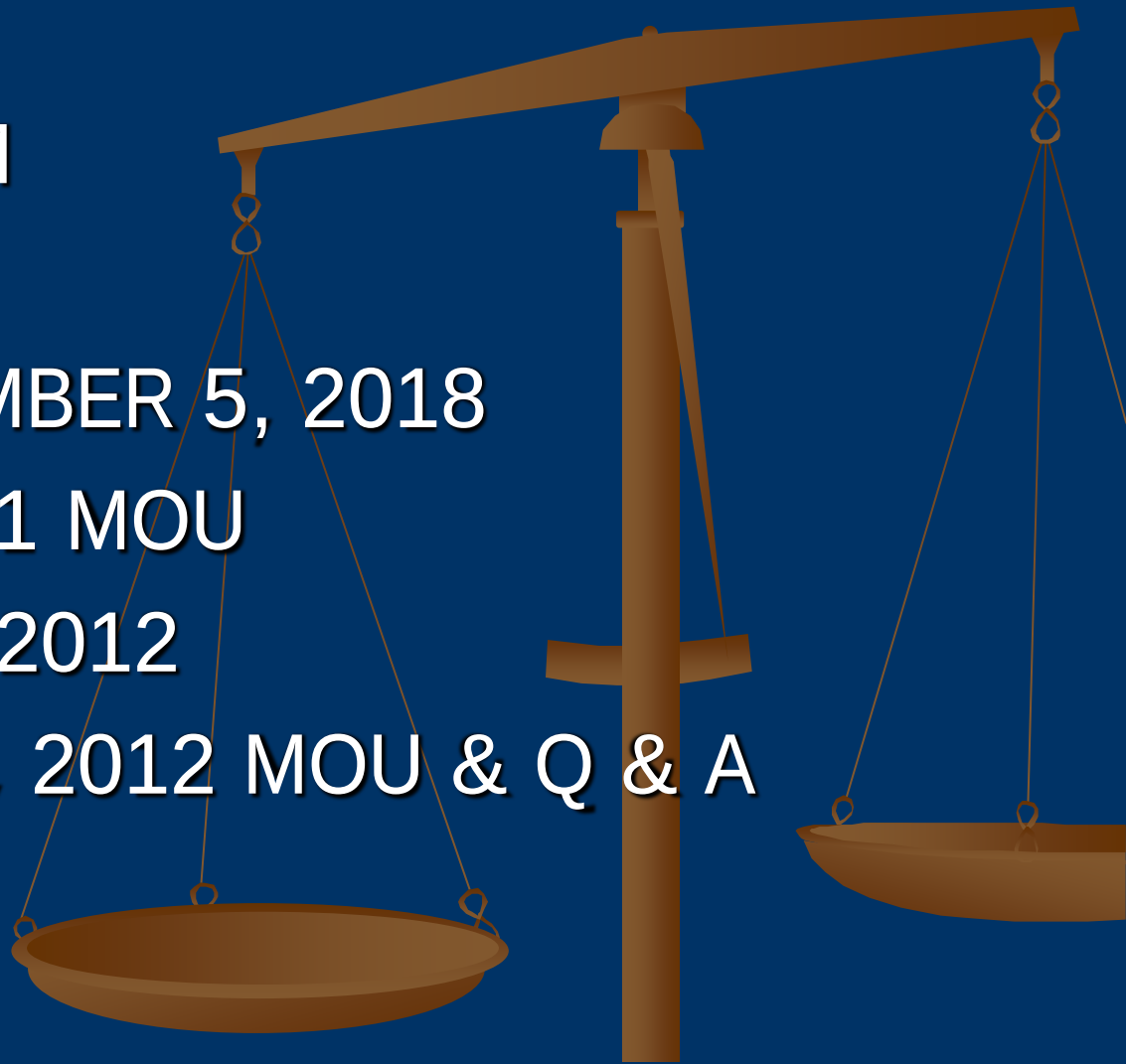
When the hours worked by a PSE on the window demonstrate the need for a full-time preferred duty assignment, such assignment will be posted for bid within the section. PSE employees who work the window may work in relief of employees holding duty assignments on the window.

Note: Your Local Memorandum of Understanding (LMOU) defines your sections for the purpose of in-section bidding.

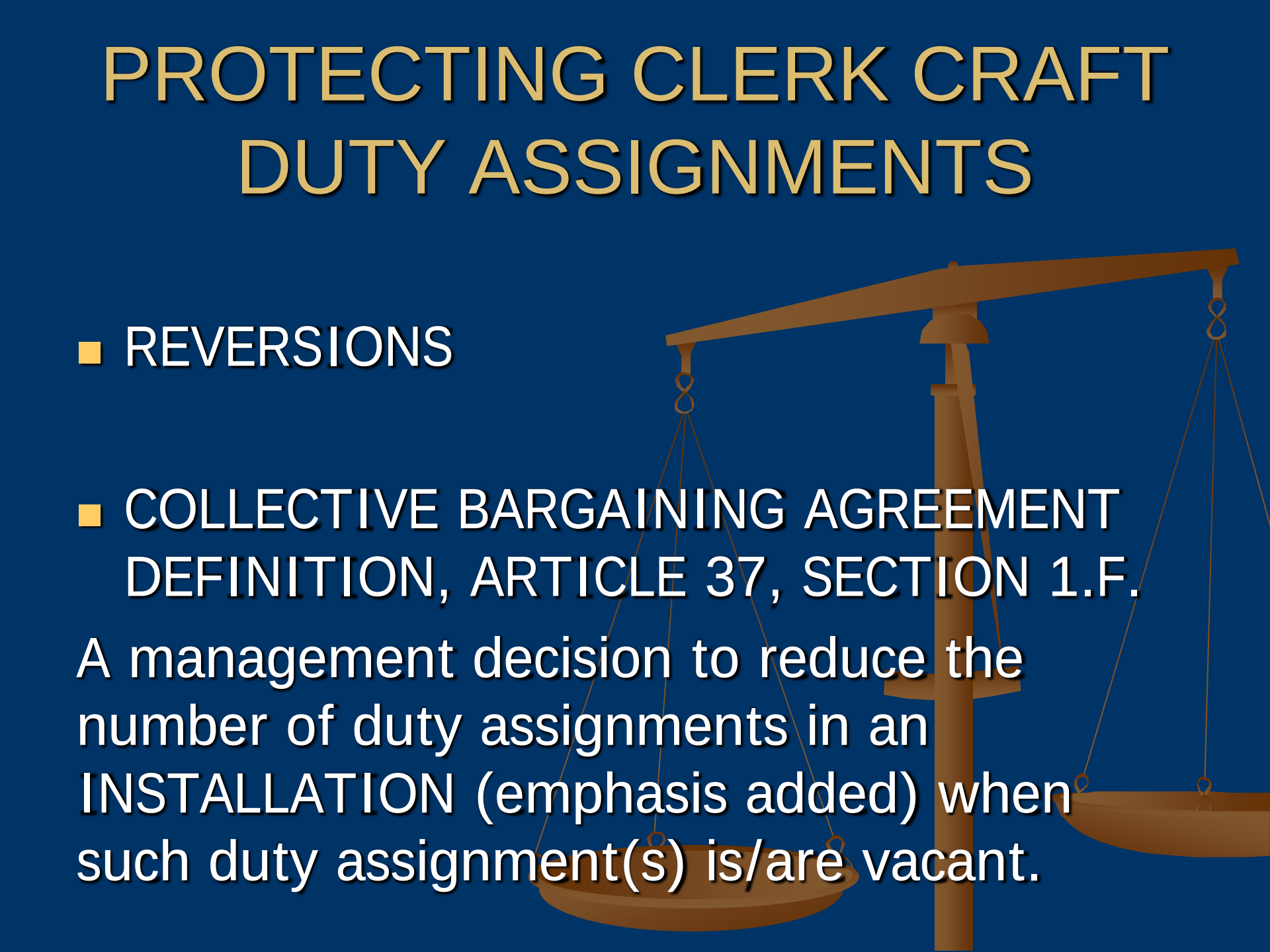


INJURED EMPLOYEES

- ARTICLE 13.4.M
- ARTICLE 7.2
- STEP 4, SEPTEMBER 5, 2018
- MARCH 11, 2011 MOU
- DOJ DECISION 2012
- SEPTEMBER 10, 2012 MOU & Q & A



PROTECTING CLERK CRAFT DUTY ASSIGNMENTS

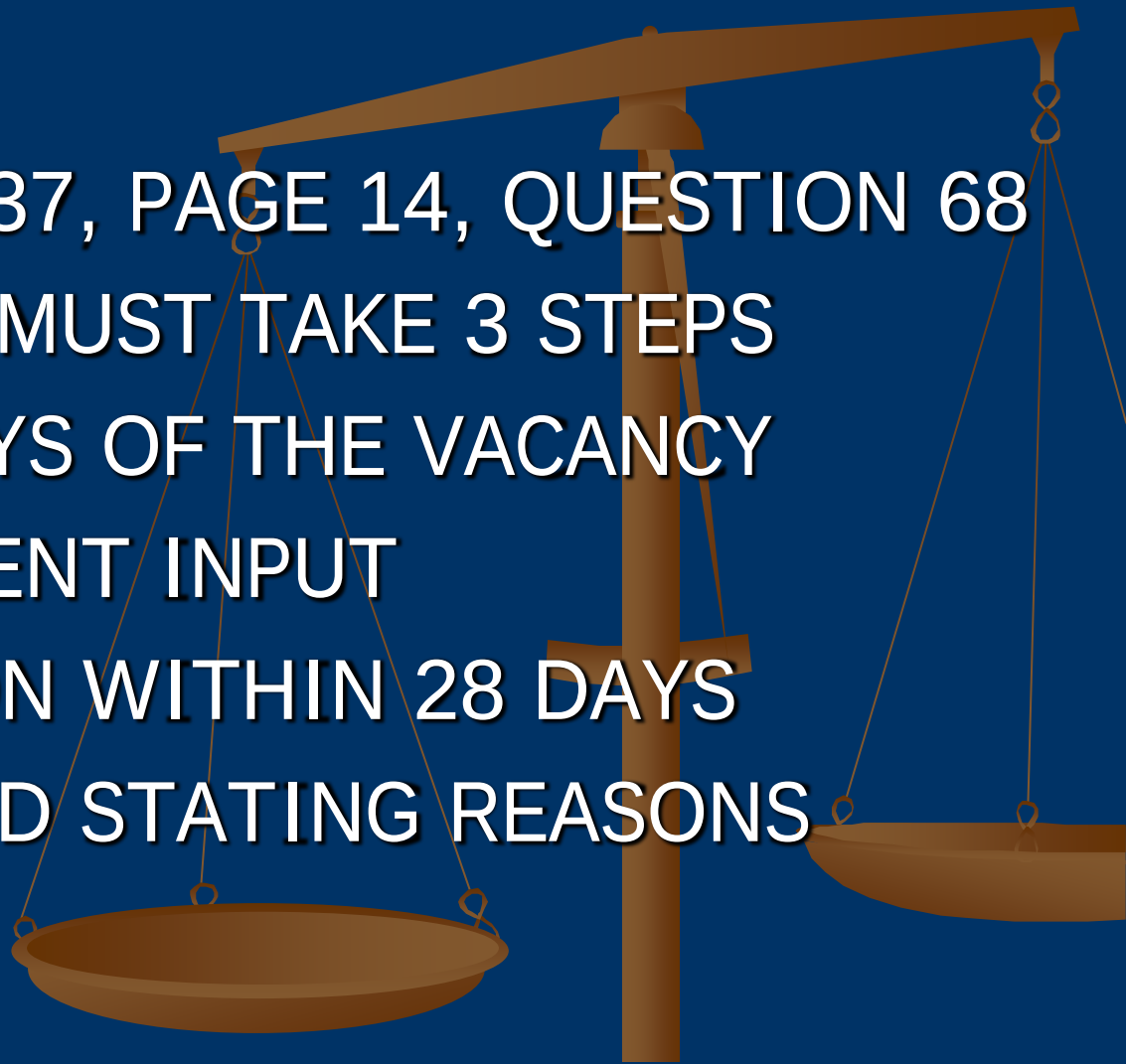


- REVERSIONS

- COLLECTIVE BARGAINING AGREEMENT DEFINITION, ARTICLE 37, SECTION 1.F.

A management decision to reduce the number of duty assignments in an INSTALLATION (emphasis added) when such duty assignment(s) is/are vacant.

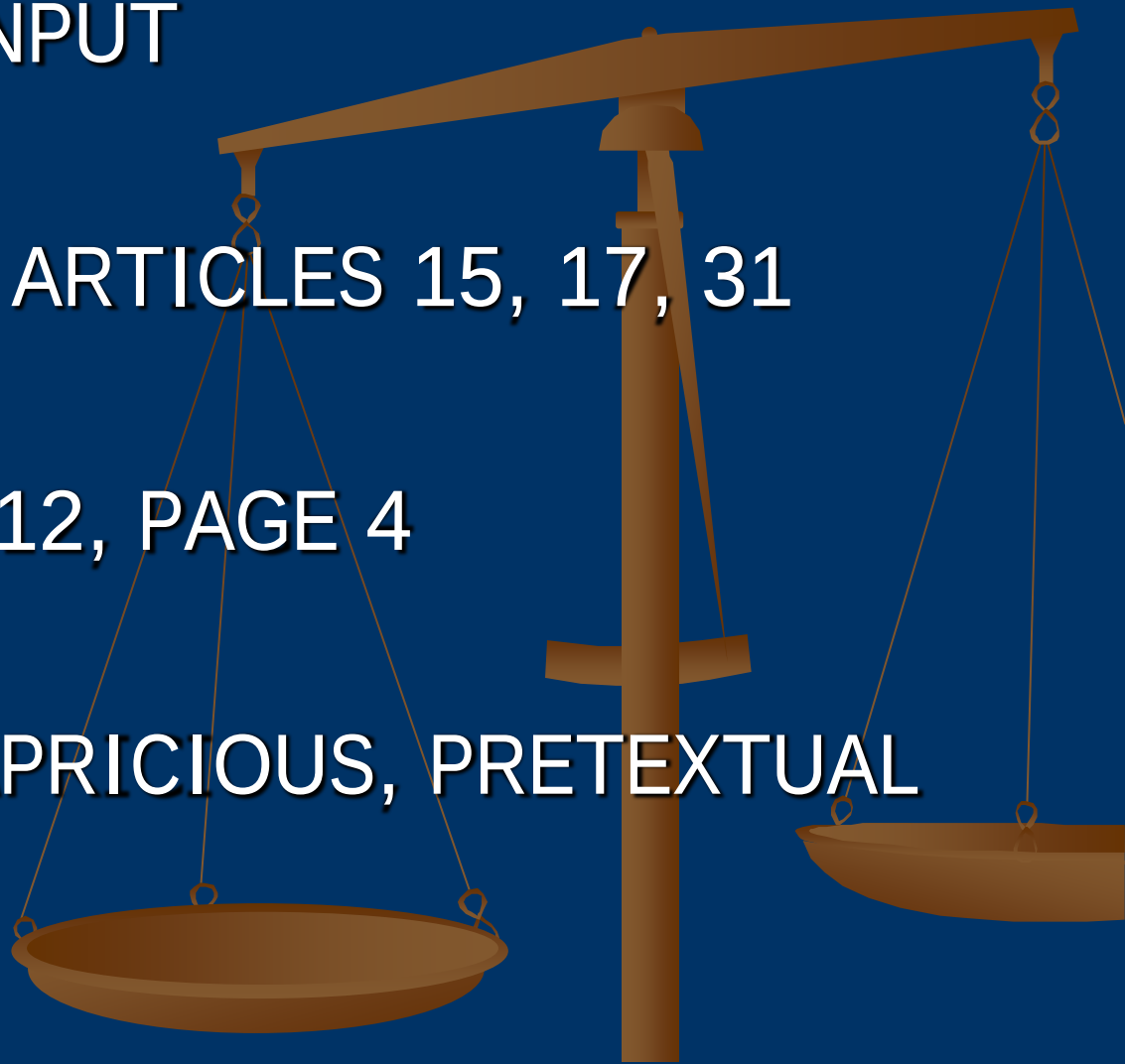
ARTICLE 37.3.A.2



- JCIM ARTICLE 37, PAGE 14, QUESTION 68
- MANAGEMENT MUST TAKE 3 STEPS
- WITHIN 28 DAYS OF THE VACANCY
- LOCAL PRESIDENT INPUT
- FINAL DECISION WITHIN 28 DAYS
- NOTICE POSTED STATING REASONS

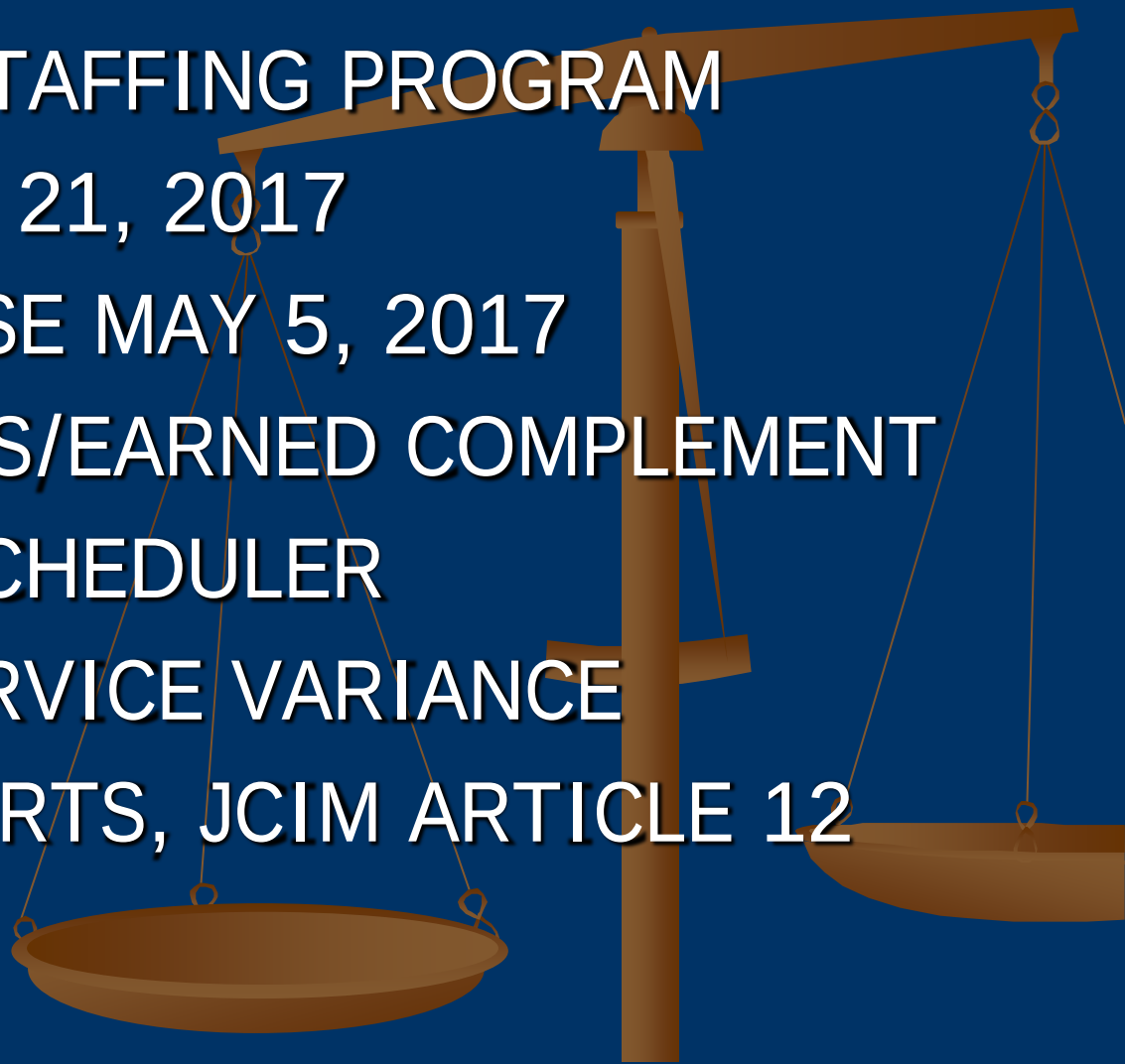
REVERSIONS

- MEANINGFUL INPUT
- RFI TEMPLATE, ARTICLES 15, 17, 31
- JCIM, ARTICLE 12, PAGE 4
- ARBITRARY, CAPRICIOUS, PRETEXTUAL



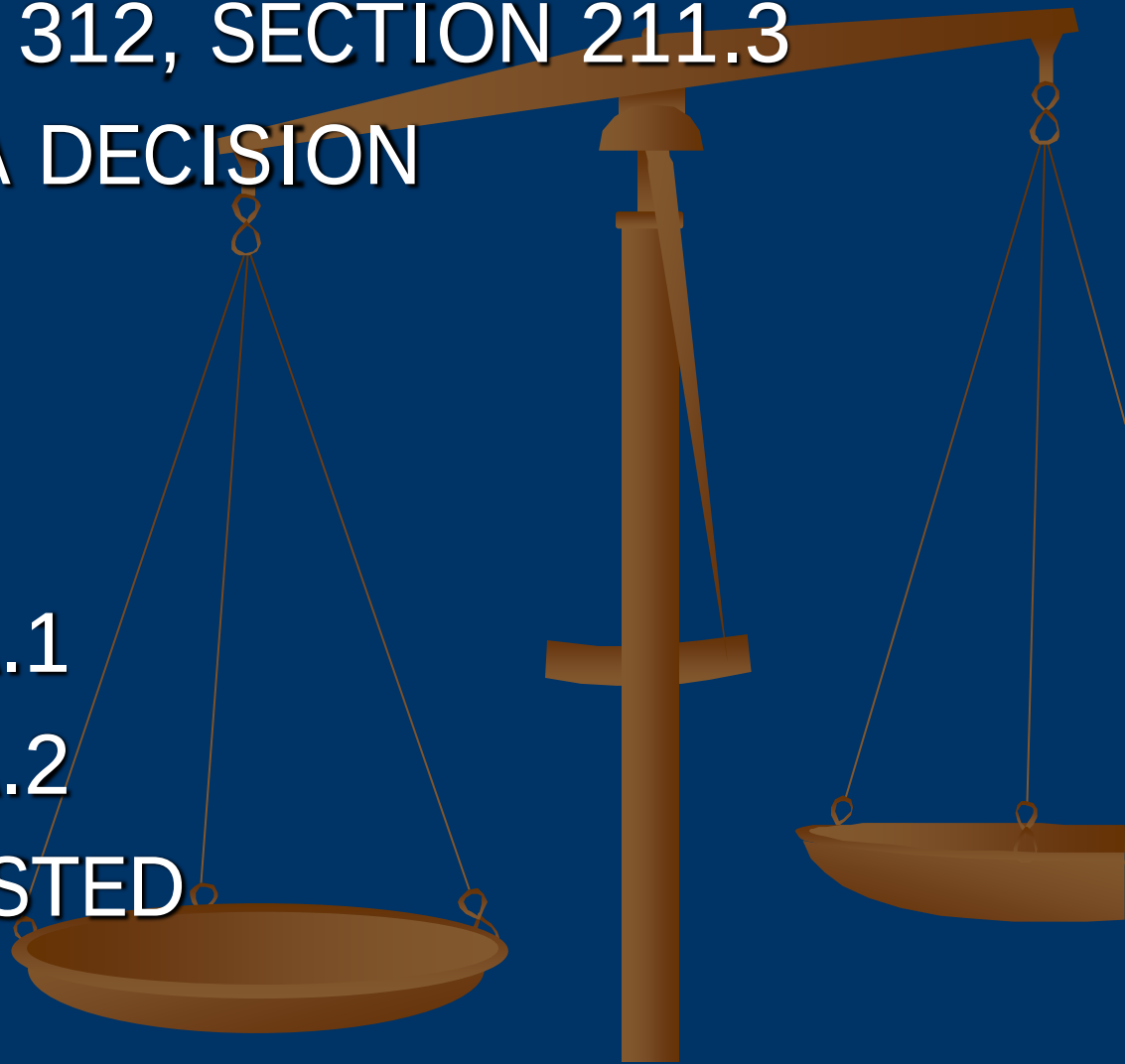
DASHBOARD

- DASHBOARD STAFFING PROGRAM
- BROOKS APRIL 21, 2017
- DEAN RESPONSE MAY 5, 2017
- EARNED HOURS/EARNED COMPLEMENT
- FUNCTION 1 SCHEDULER
- CUSTOMER SERVICE VARIANCE
- STUDIES/REPORTS, JCIM ARTICLE 12



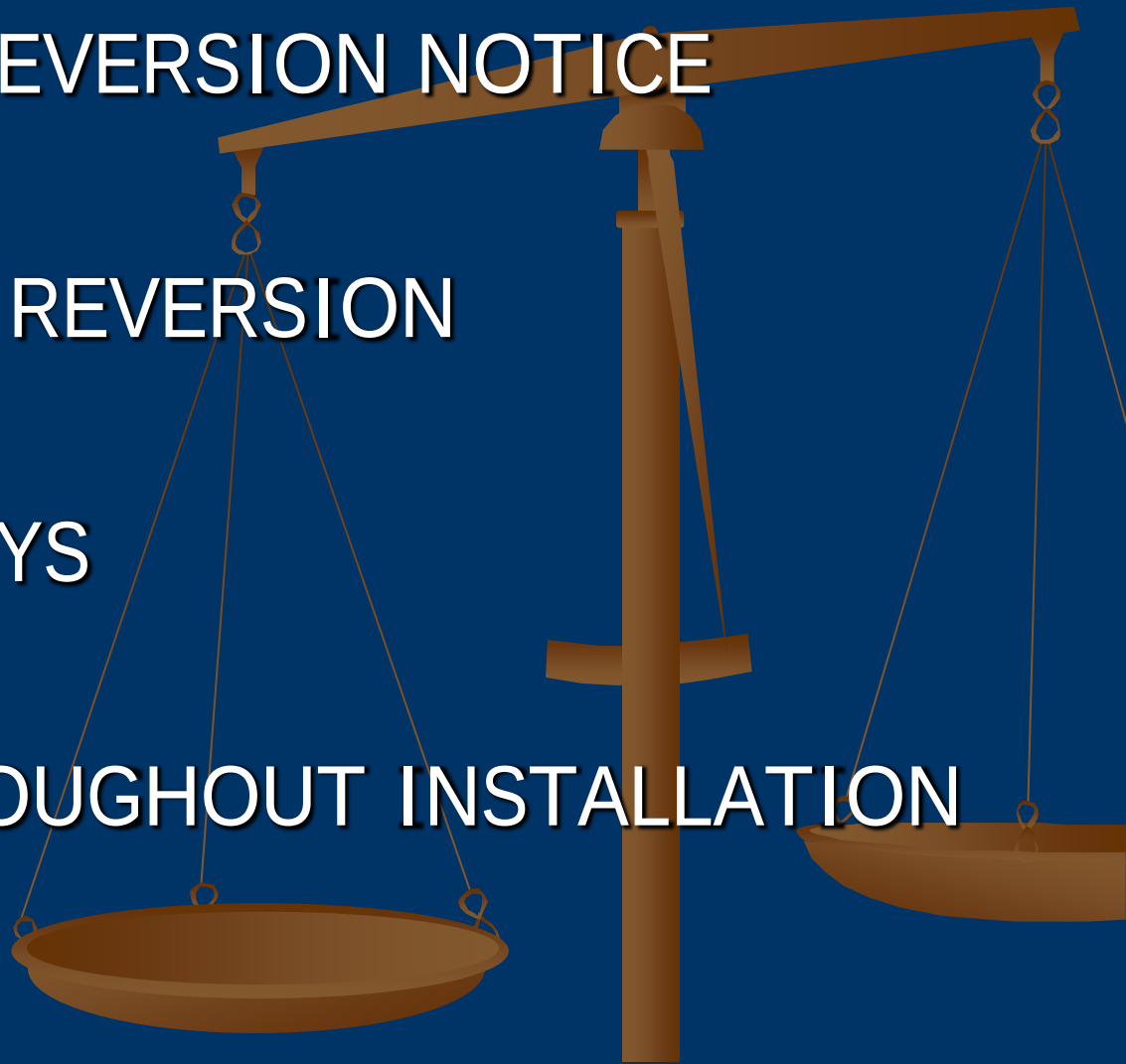
CONTRACTUAL PROVISIONS

- ARTICLE 19, EL 312, SECTION 211.3
- DISTRICT/AREA DECISION
- ARTICLE 15
- ARTICLE 5
- ARTICLE 34
- ARTICLE 37.3.A.1
- ARTICLE 37.3.A.2
- EXISTS VS. EXISTED



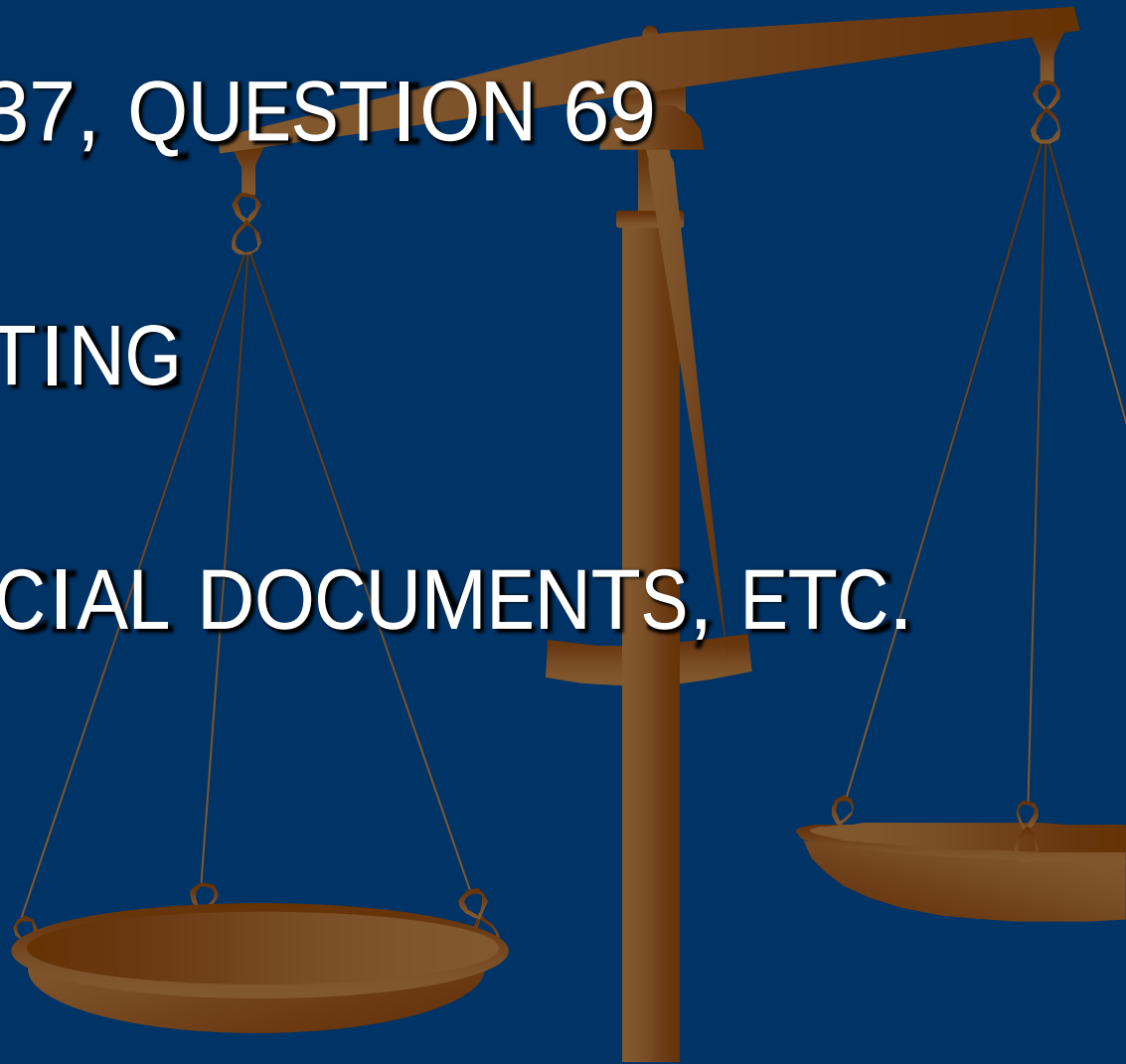
POSTING

- POSTING OF REVERSION NOTICE
- REASONS FOR REVERSION
- WITHIN 28 DAYS
- POSTING THROUGHOUT INSTALLATION



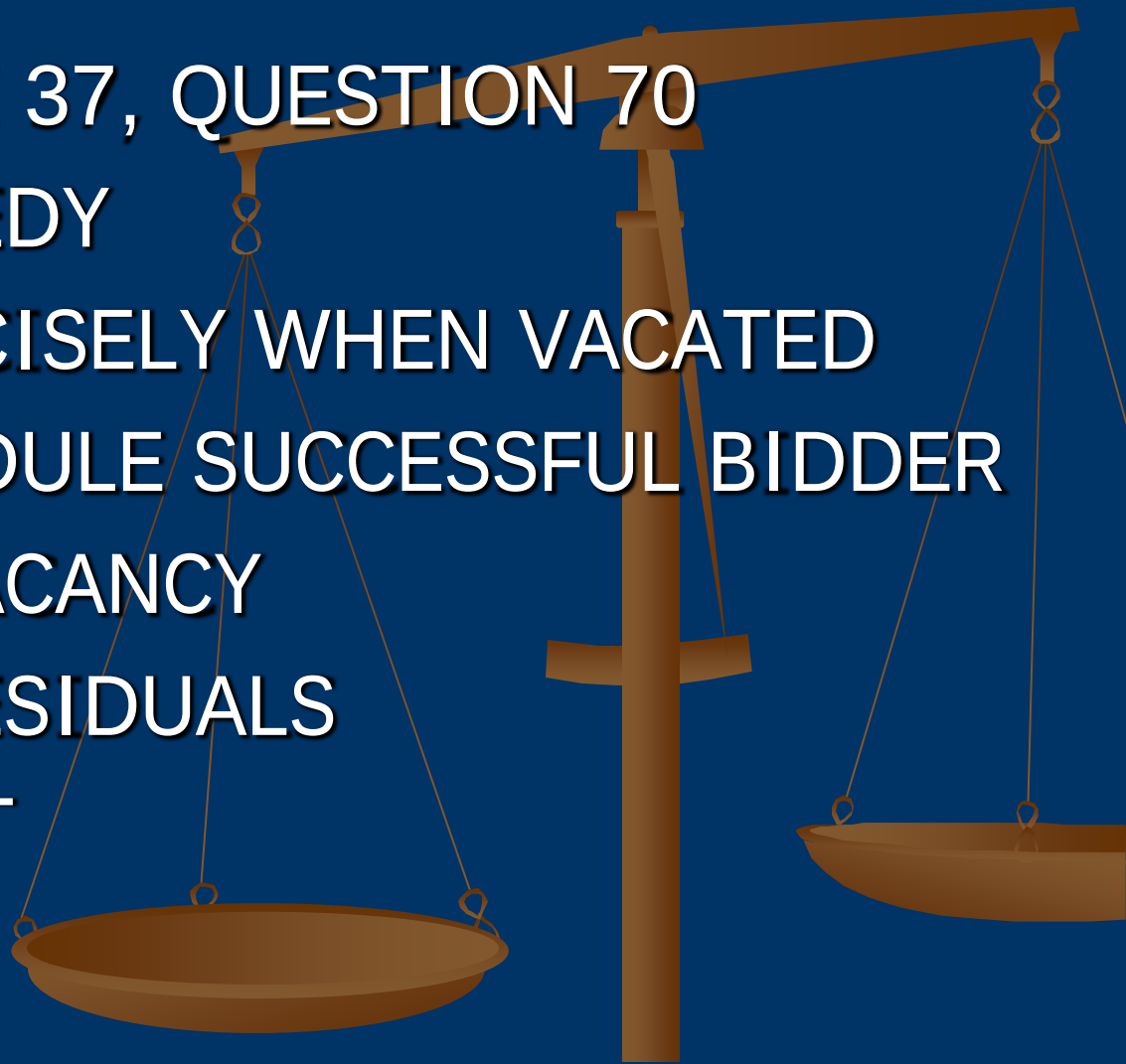
CLOCK STARTS

- JCIM ARTICLE 37, QUESTION 69
- DATE OF VACATING
- FORM 50, OFFICIAL DOCUMENTS, ETC.



REMEDY

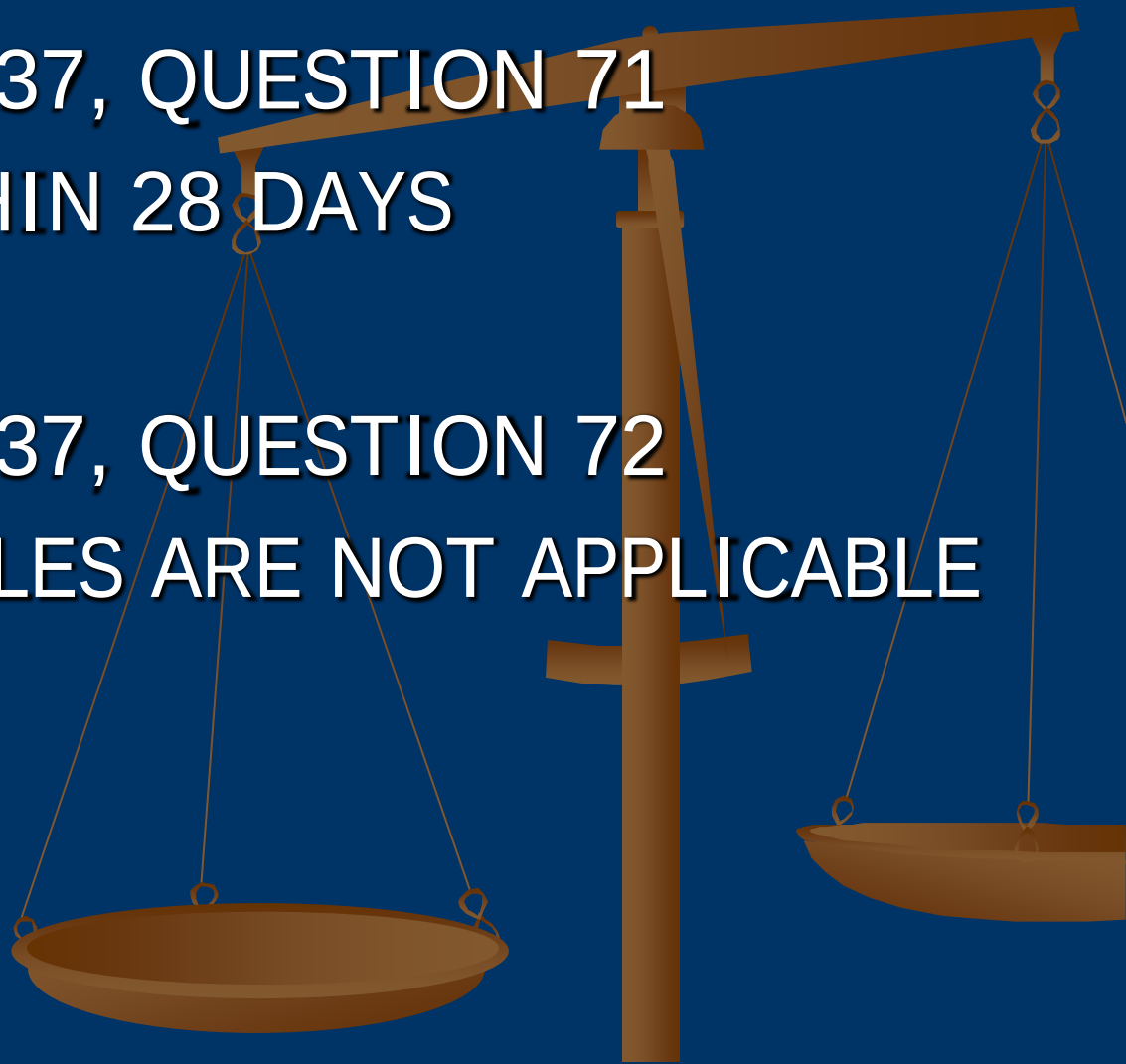
- JCIM, ARTICLE 37, QUESTION 70
- NORMAL REMEDY
- POSTING PRECISELY WHEN VACATED
- OUT OF SCHEDULE SUCCESSFUL BIDDER
- RESULTING VACANCY
- RESULTING RESIDUALS
- RIPPLE EFFECT



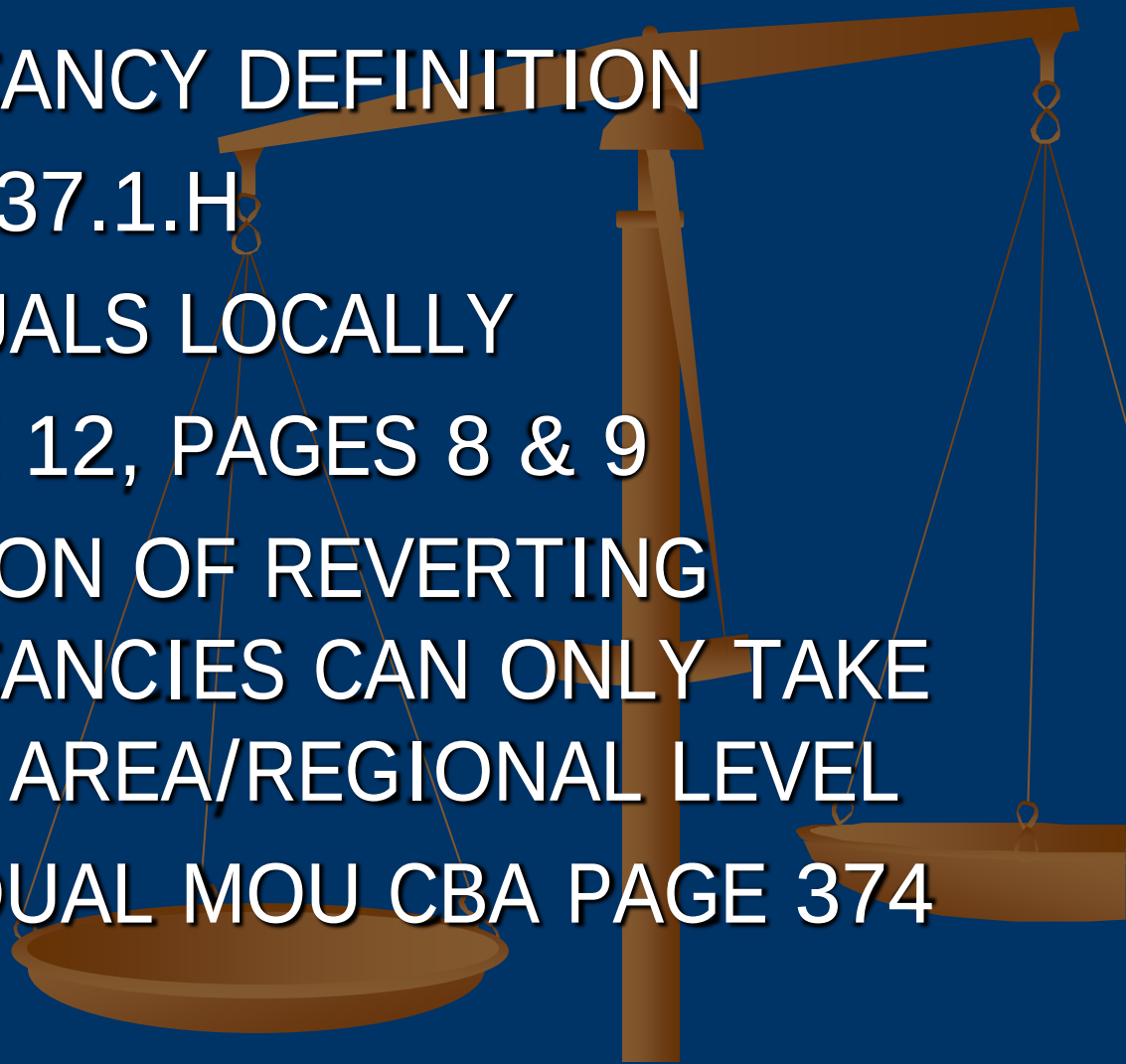
CHANGES MAY BE MADE

- JCIM, ARTICLE 37, QUESTION 71
- CHANGES WITHIN 28 DAYS

- JCIM, ARTICLE 37, QUESTION 72
- REVERSION RULES ARE NOT APPLICABLE



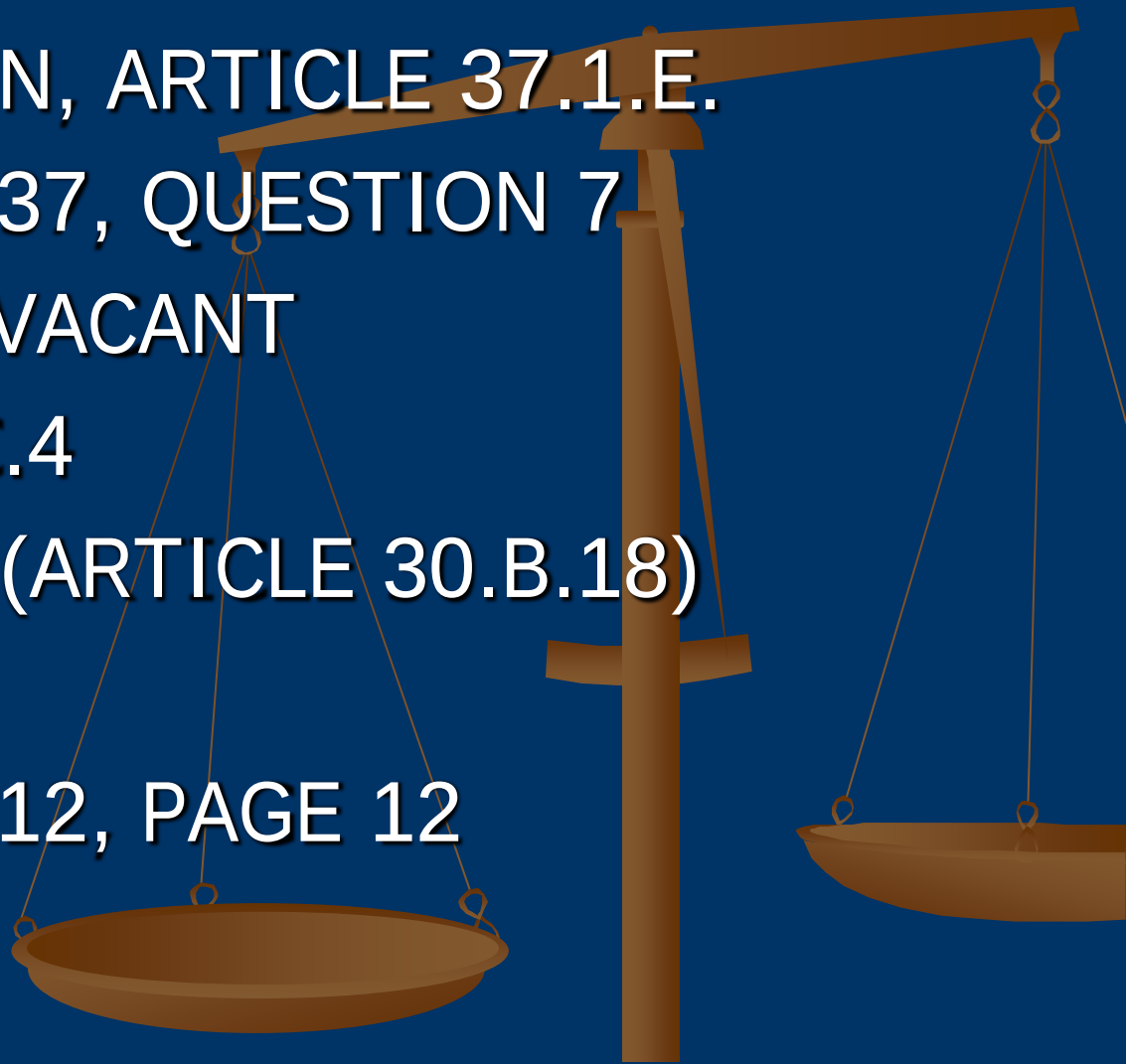
BEWARE



- RESIDUAL VACANCY DEFINITION
- CBA, ARTICLE 37.1.H
- TRACK RESIDUALS LOCALLY
- JCIM, ARTICLE 12, PAGES 8 & 9
- ANY DISCUSSION OF REVERTING RESIDUAL VACANCIES CAN ONLY TAKE PLACE AT THE AREA/REGIONAL LEVEL
- FILLING RESIDUAL MOU CBA PAGE 374

ABOLISHMENTS

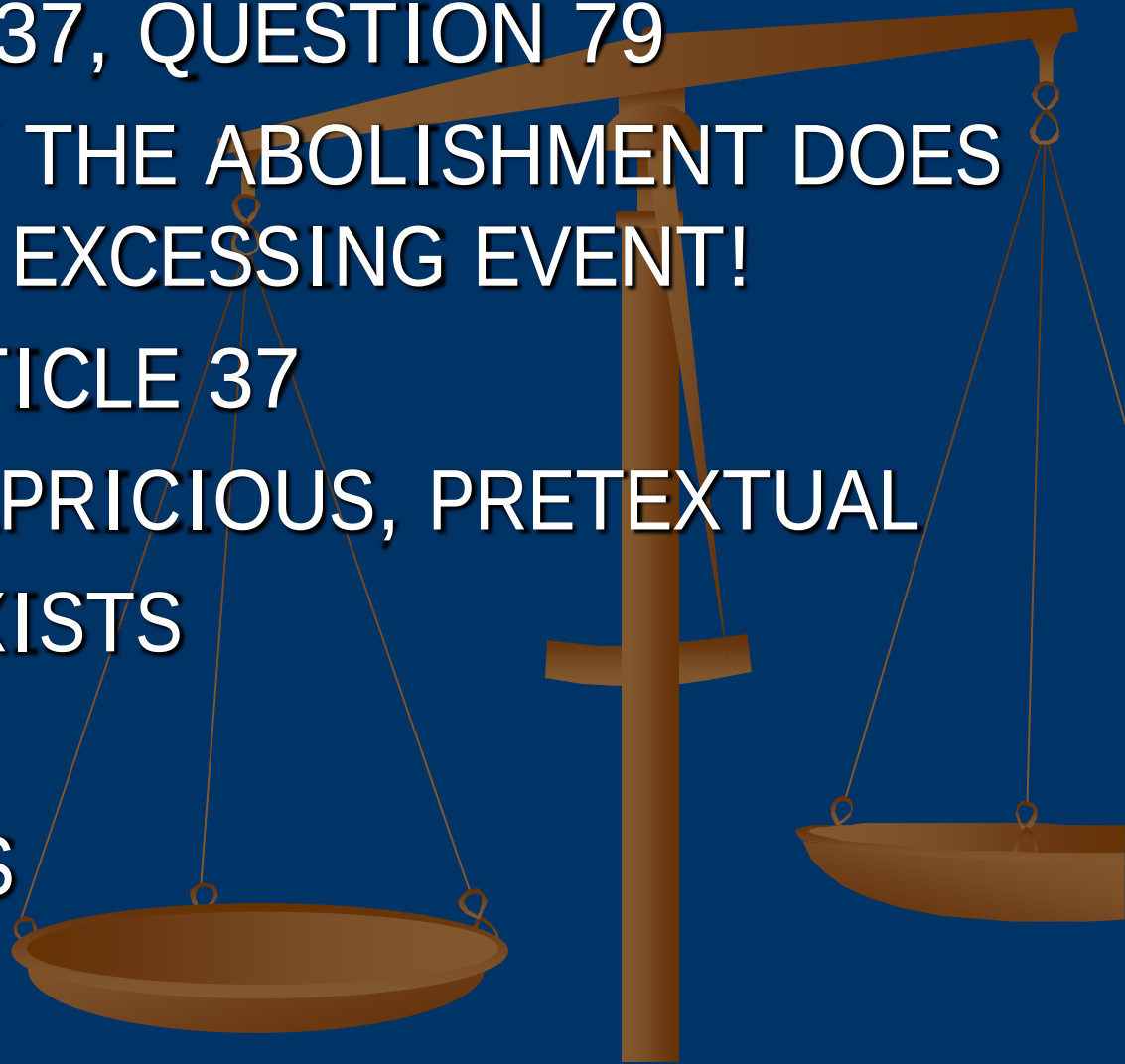
- CBA DEFINITION, ARTICLE 37.1.E.
- JCIM, ARTICLE 37, QUESTION 7
- OCCUPIED VS. VACANT
- ARTICLE 12.5.C.4
- ITEM 18 LMOU (ARTICLE 30.B.18)
- Article 37.3.B.2
- JCIM, ARTICLE 12, PAGE 12



ABOLISHMENTS

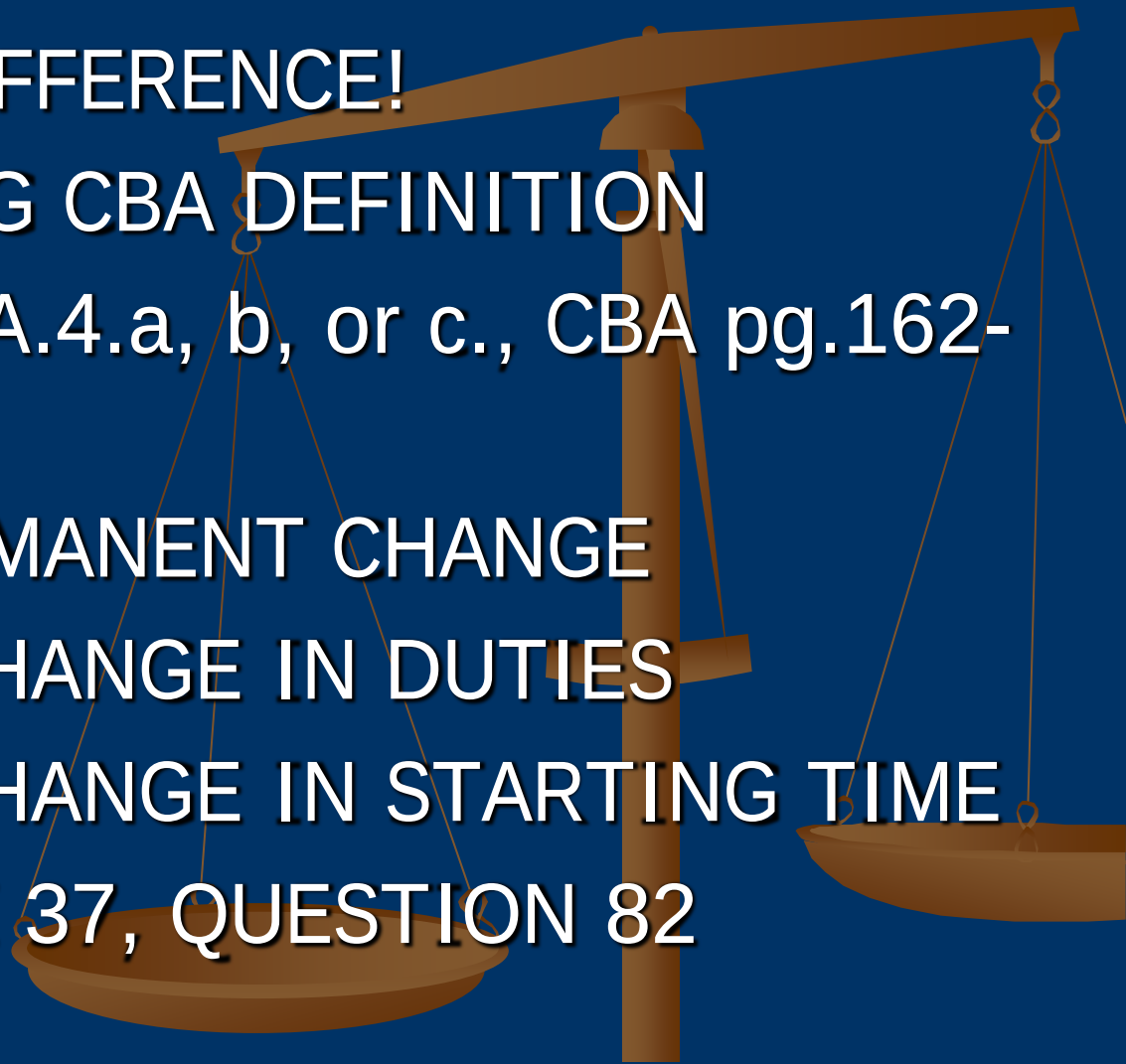
- JCIM, ARTICLE 37, QUESTION 79

  THE ONLY WAY THE ABOLISHMENT DOES NOT CAUSE AN EXCESSING EVENT!
- ARTICLE 5, ARTICLE 37
- ARBITRARY, CAPRICIOUS, PRETEXTUAL
- WORK STILL EXISTS
- INTERVIEWS
- SMOKING GUNS



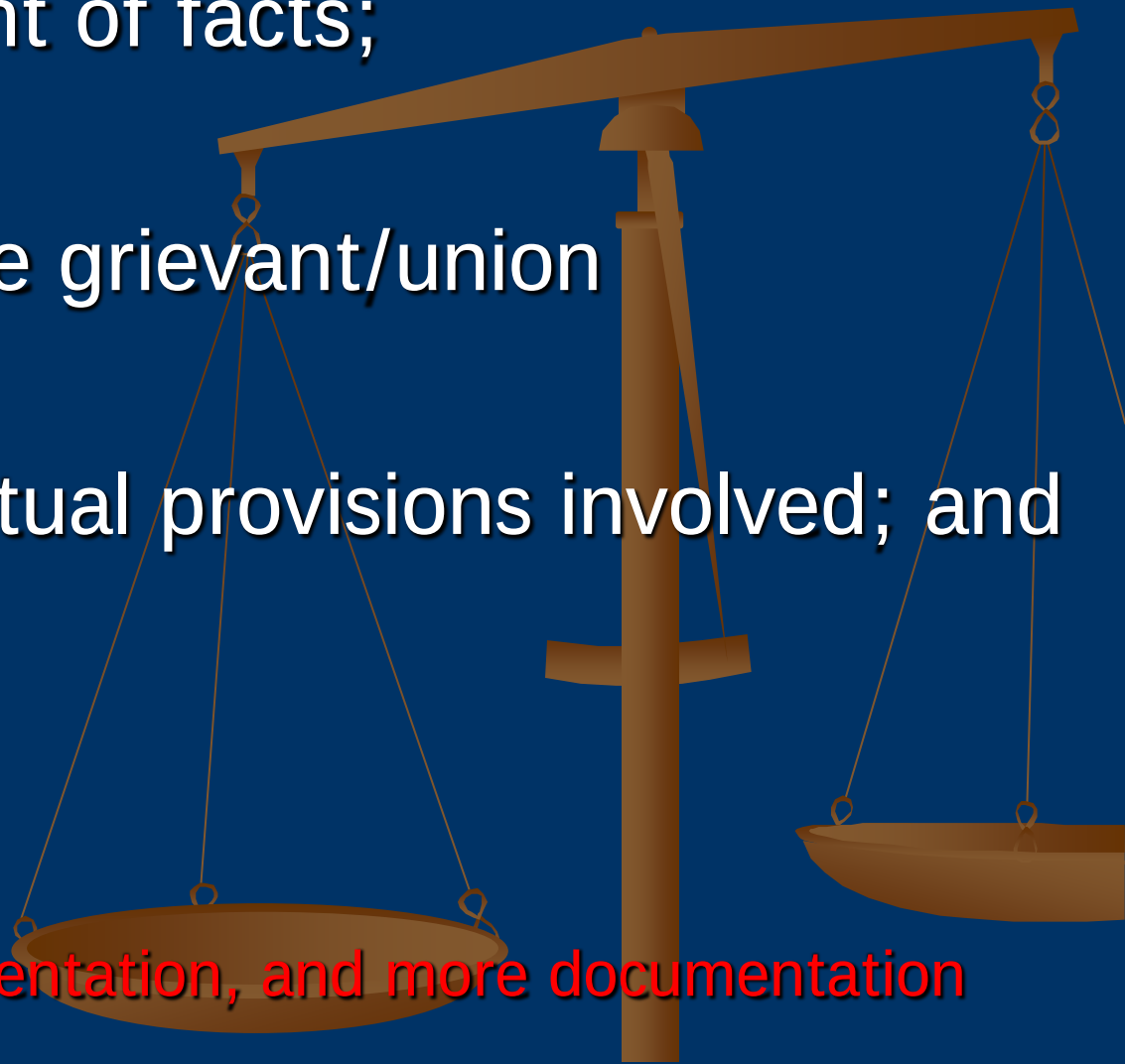
REPOSTING VS. ABOLISHMENT

- THERE IS A DIFFERENCE!
- ARTICLE 37.1.G CBA DEFINITION
- ARTICLE 37.3.A.4.a, b, or c., CBA pg.162-164
- N/S DAYS PERMANENT CHANGE
- SUFFICIENT CHANGE IN DUTIES
- SUFFICIENT CHANGE IN STARTING TIME
- JCIM, ARTICLE 37, QUESTION 82

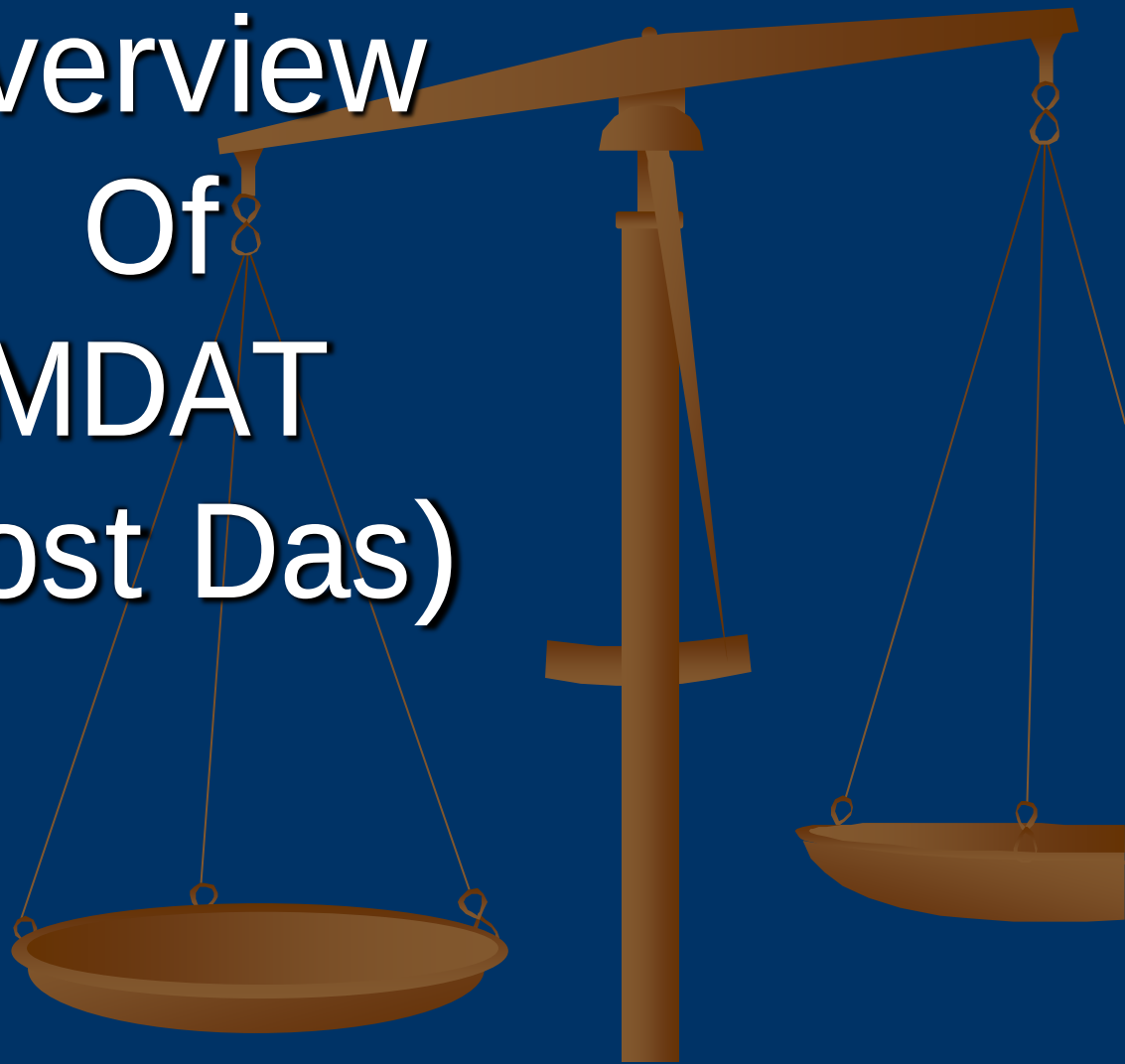


RECAP

- Detailed statement of facts;
- Contentions of the grievant/union
- Particular contractual provisions involved; and
- Remedy sought
- Documentation, documentation, and more documentation



Overview Of MDAT (Post Das)



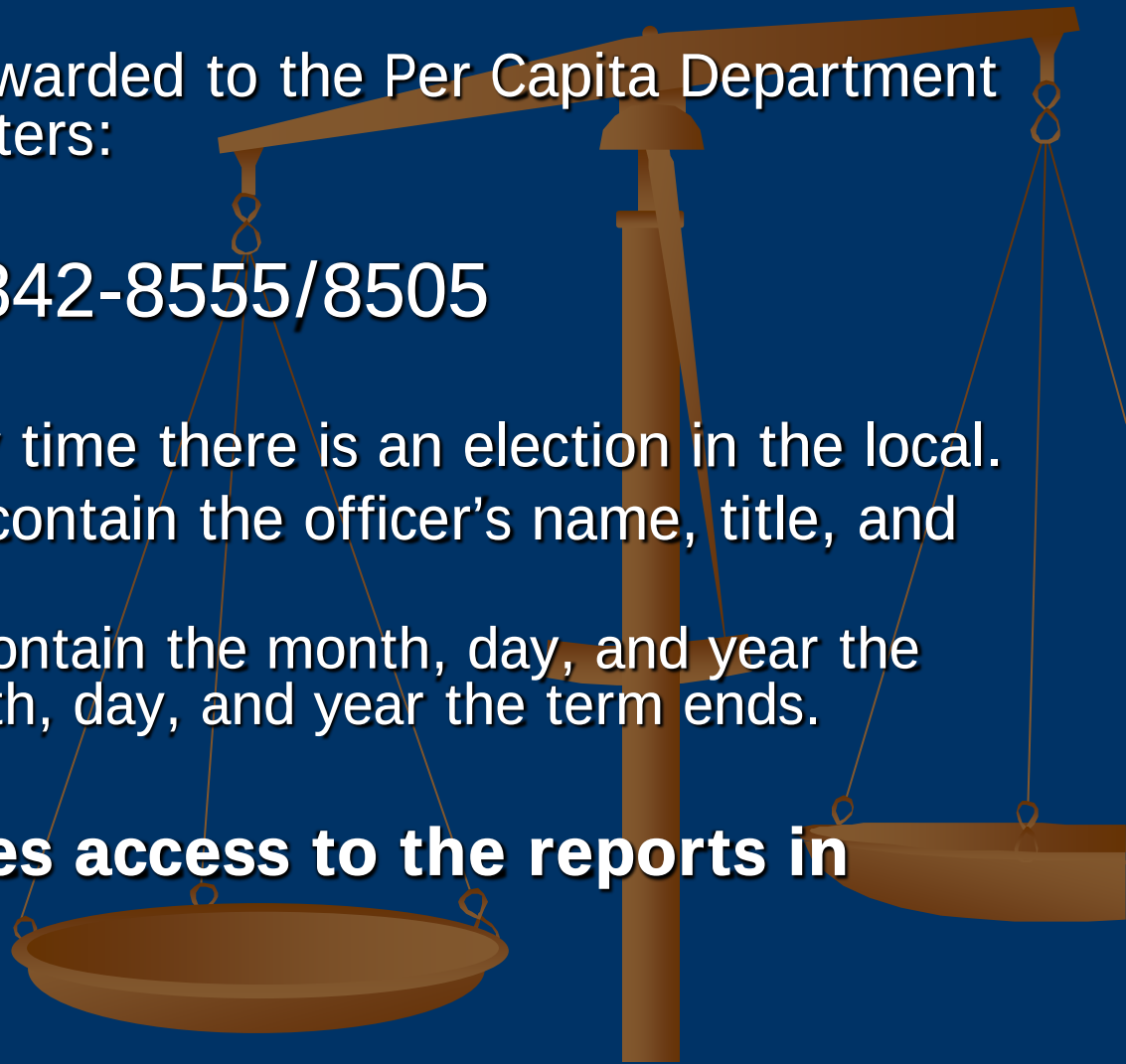
Access to MDAT

Officer profiles must be forwarded to the Per Capita Department located at APWU Headquarters:

202-842-8555/8505

- This must be done every time there is an election in the local.
- The officer profile must contain the officer's name, title, and the term of office.
- The term of office must contain the month, day, and year the term begins and the month, day, and year the term ends.

- **This is what activates access to the reports in MDAT.**



Access to MDAT

The Local/State President will automatically have access to MDAT.

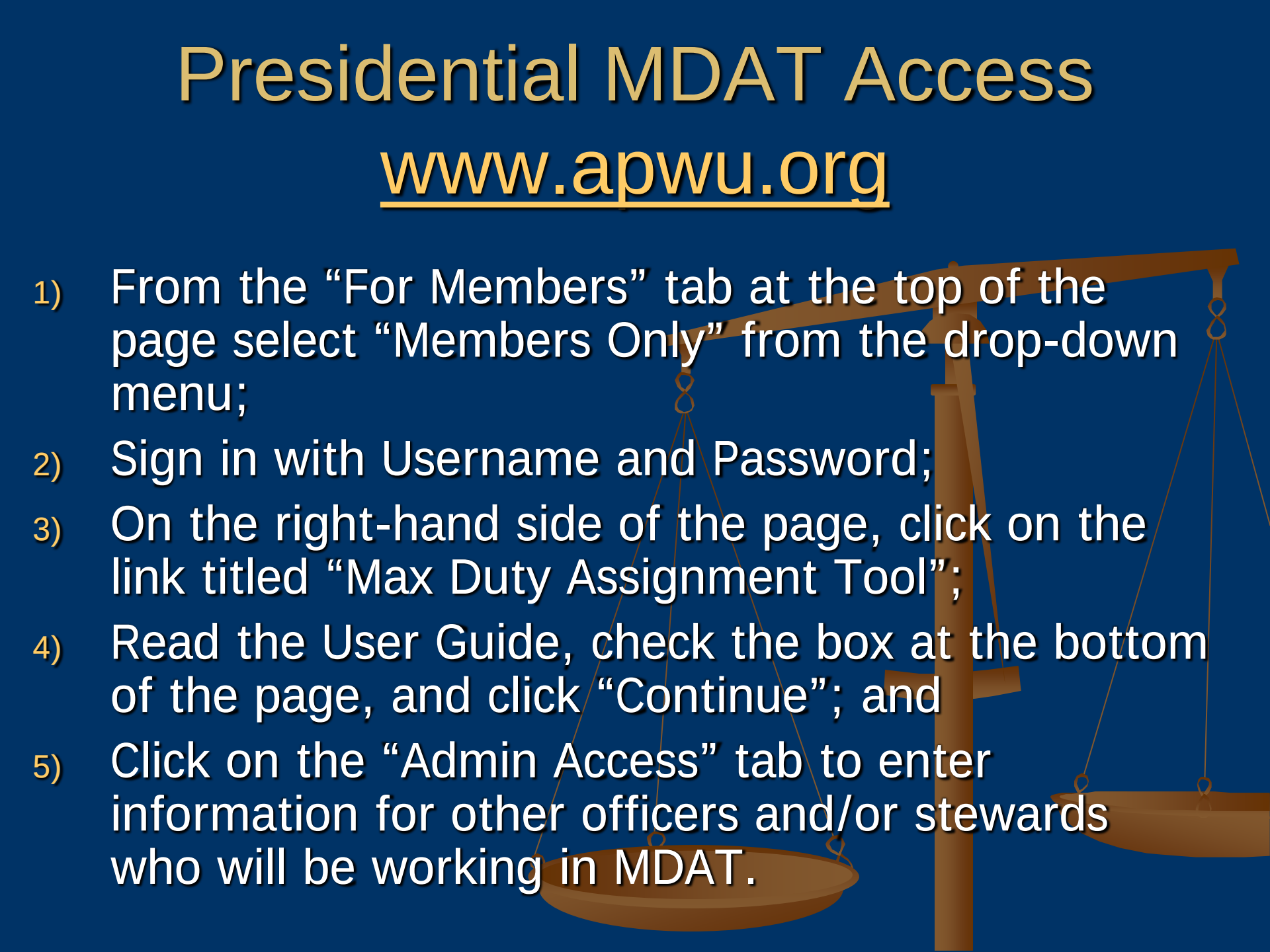
- He or she can access MDAT and give access to up to three other officers and/or stewards who will be working in MDAT.

For the President to access MDAT, he/she would go to www.apwu.org and proceed with the following steps:

Presidential MDAT Access

www.apwu.org

1) From the “For Members” tab at the top of the page select “Members Only” from the drop-down menu;
2) Sign in with Username and Password;
3) On the right-hand side of the page, click on the link titled “Max Duty Assignment Tool”;
4) Read the User Guide, check the box at the bottom of the page, and click “Continue”; and
5) Click on the “Admin Access” tab to enter information for other officers and/or stewards who will be working in MDAT.



Troubleshooting Errors

- **File Size**

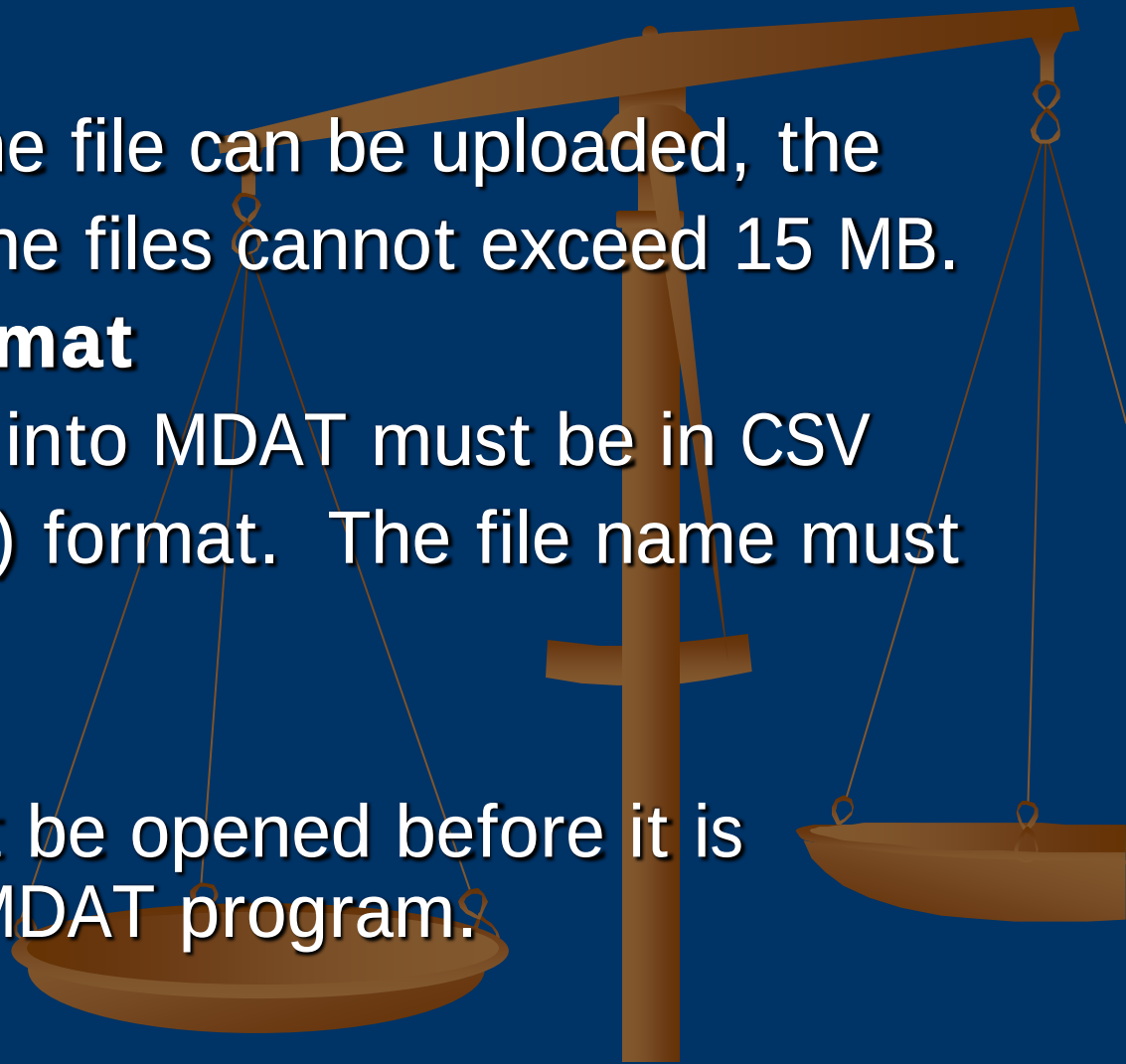
  While more than one file can be uploaded, the combined total of the files cannot exceed 15 MB.

- **Improper File Format**

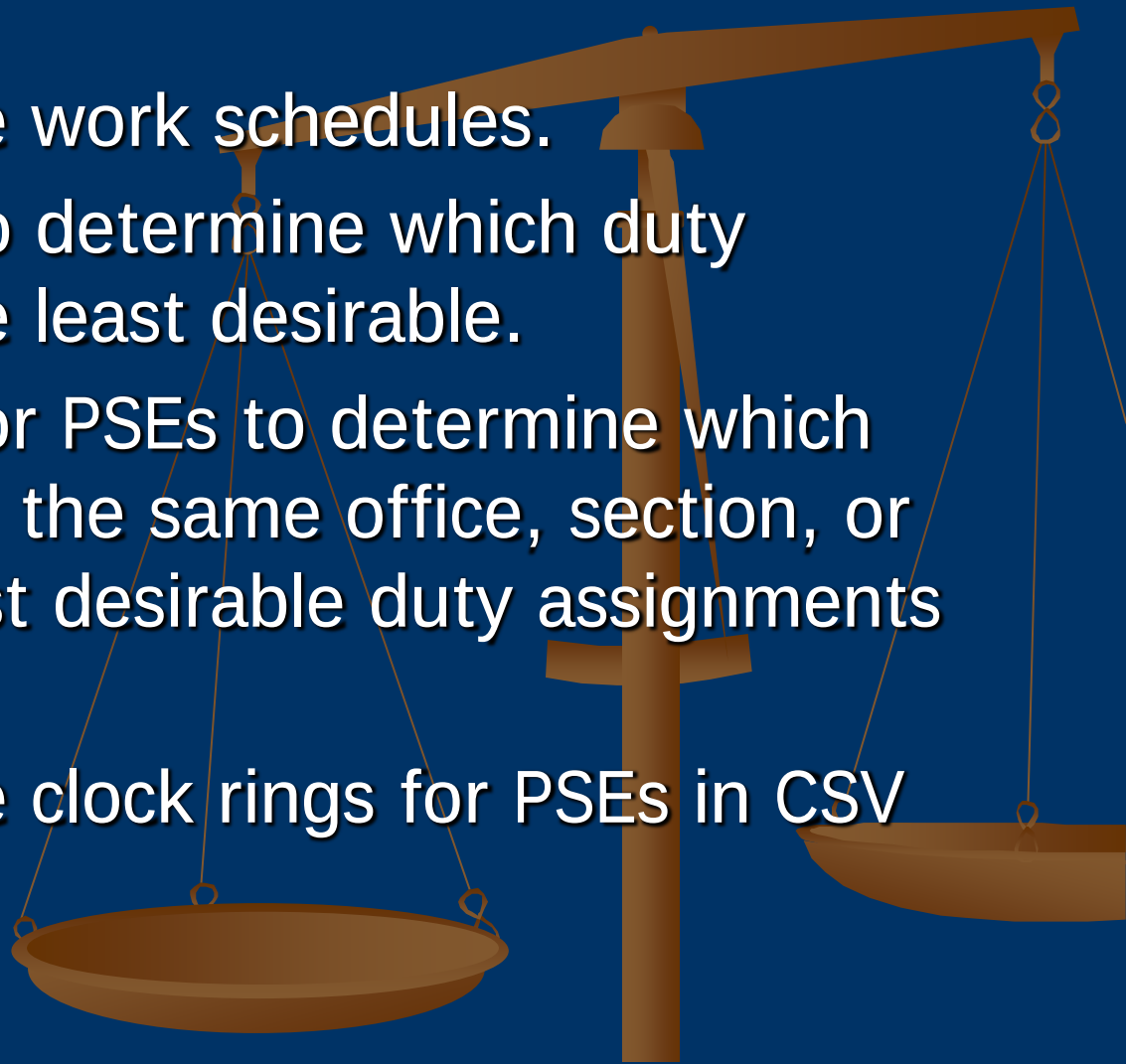
  The files uploaded into MDAT must be in CSV (Comma Delimited) format. The file name must end in ".csv".

- **Corrupted File**

  The CSV file cannot be opened before it is uploaded into the MDAT program.

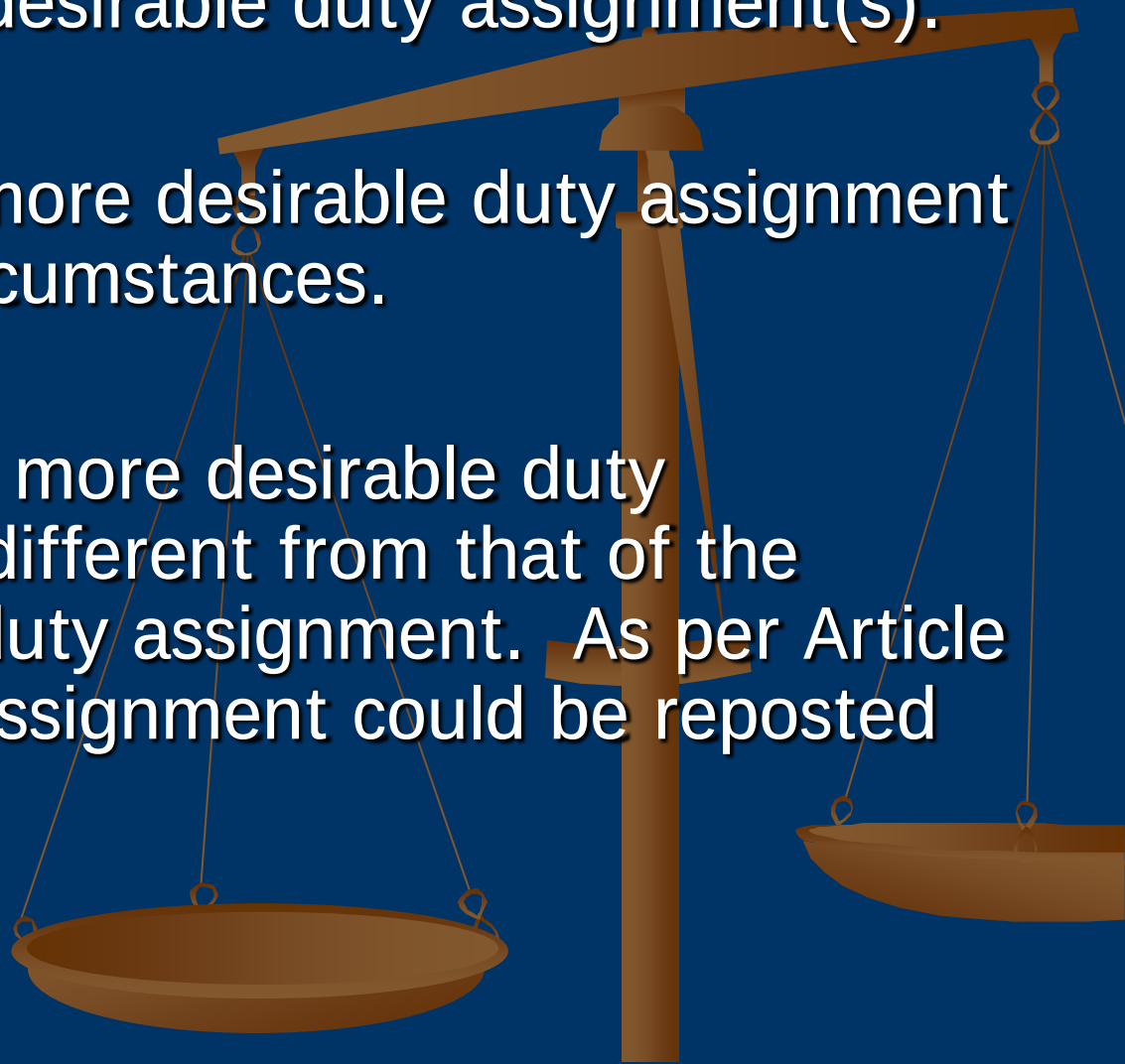


More Desirable Duty Assignments



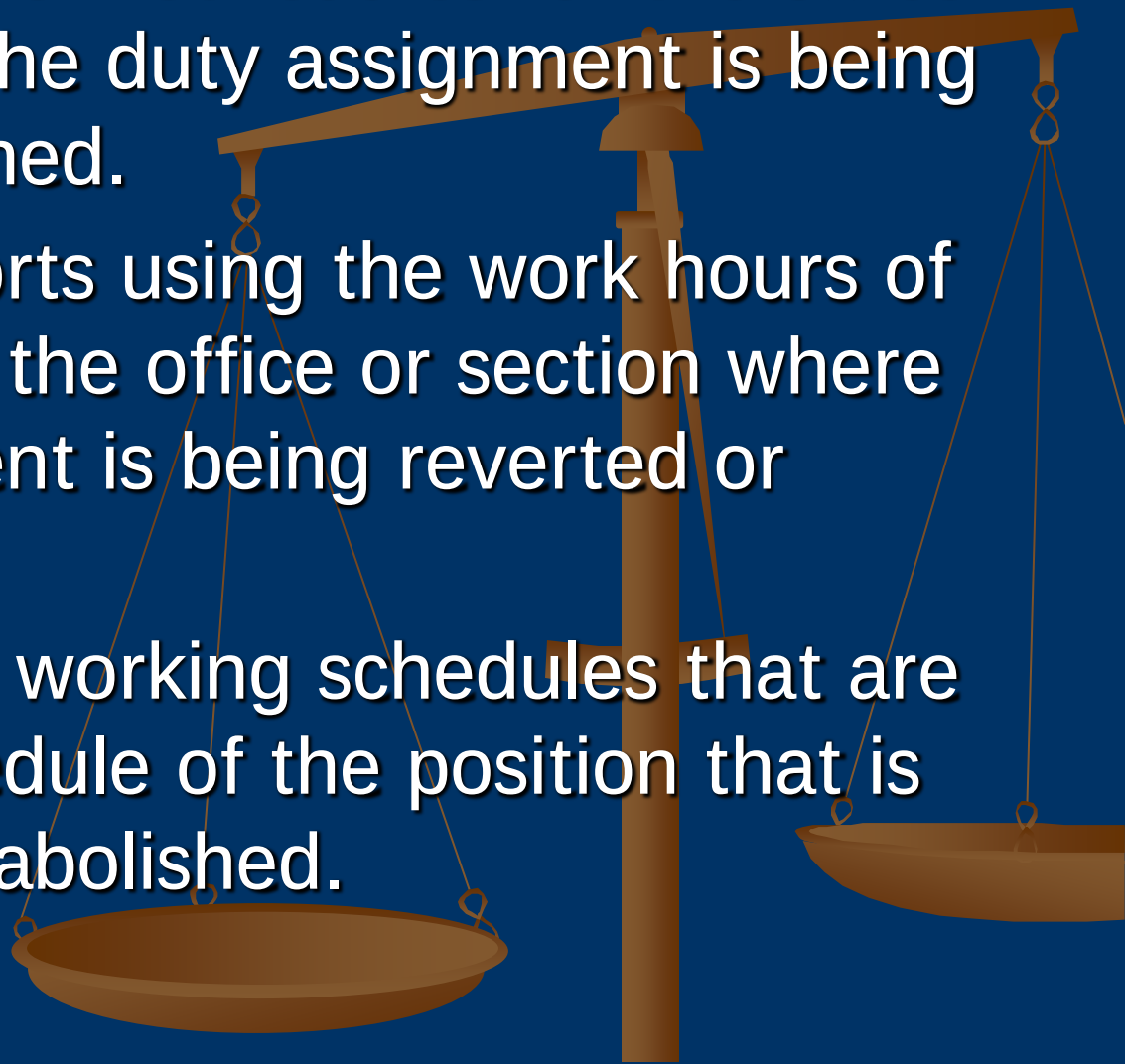
- Obtain copies of the work schedules.
- Review schedules to determine which duty assignments are the least desirable.
- Review schedules for PSEs to determine which PSEs are working in the same office, section, or Tour where the least desirable duty assignments are located.
- Obtain copies of the clock rings for PSEs in CSV and PDF formats.

- Select the PSE's to run in the MDAT program who will generate more desirable duty assignment(s).
- The definition of a more desirable duty assignment is based on local circumstances.
- The schedule of the more desirable duty assignment can be different from that of the currently occupied duty assignment. As per Article 37.3.A.4, the duty assignment could be reposted for bid.



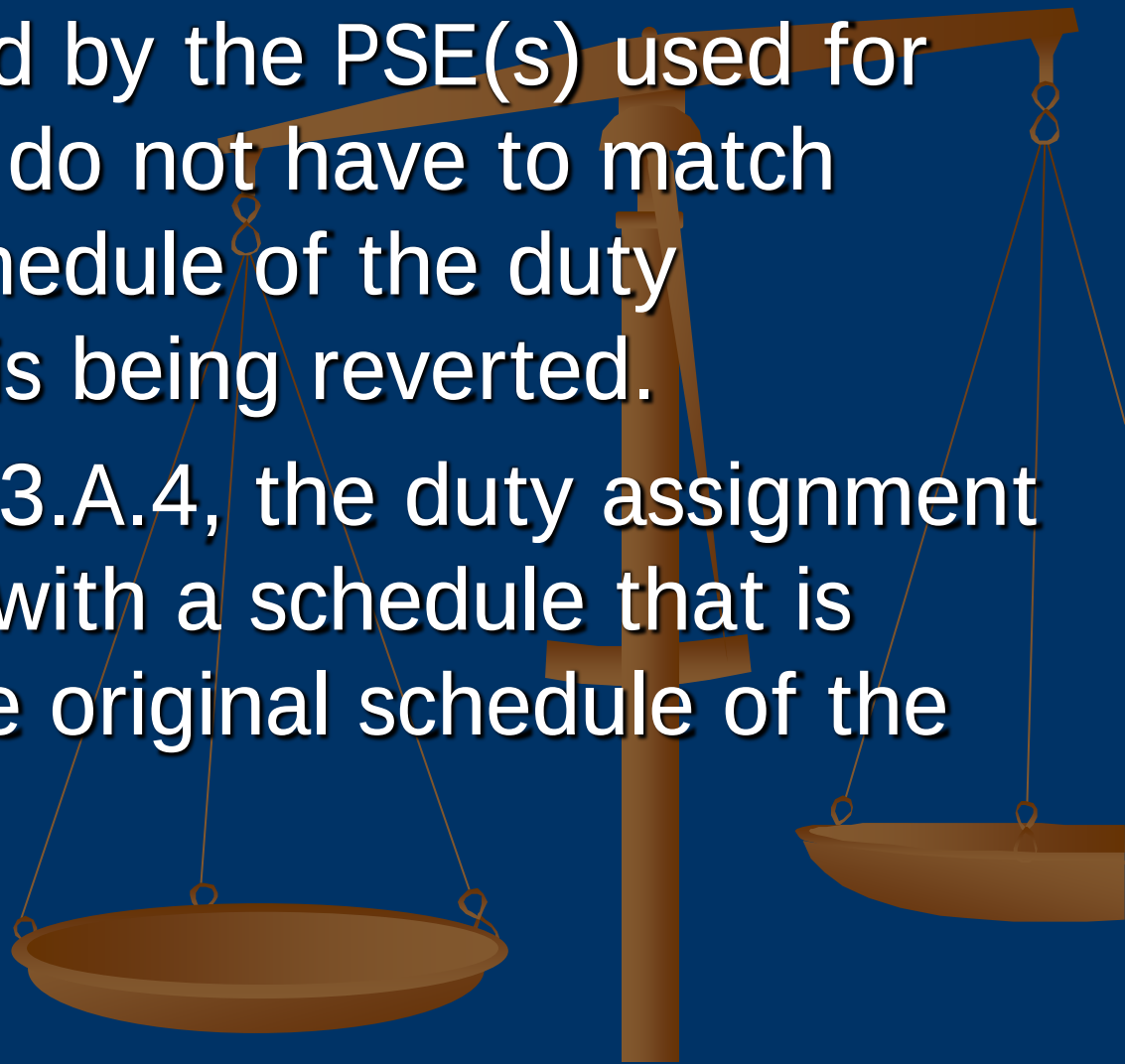
Reversions and Abolishments

- Obtain copies of work schedules for the office or section where the duty assignment is being reverted or abolished.
- Create MDAT reports using the work hours of PSEs who work in the office or section where the duty assignment is being reverted or abolished.
- Use PSEs who are working schedules that are similar to the schedule of the position that is being reverted or abolished.

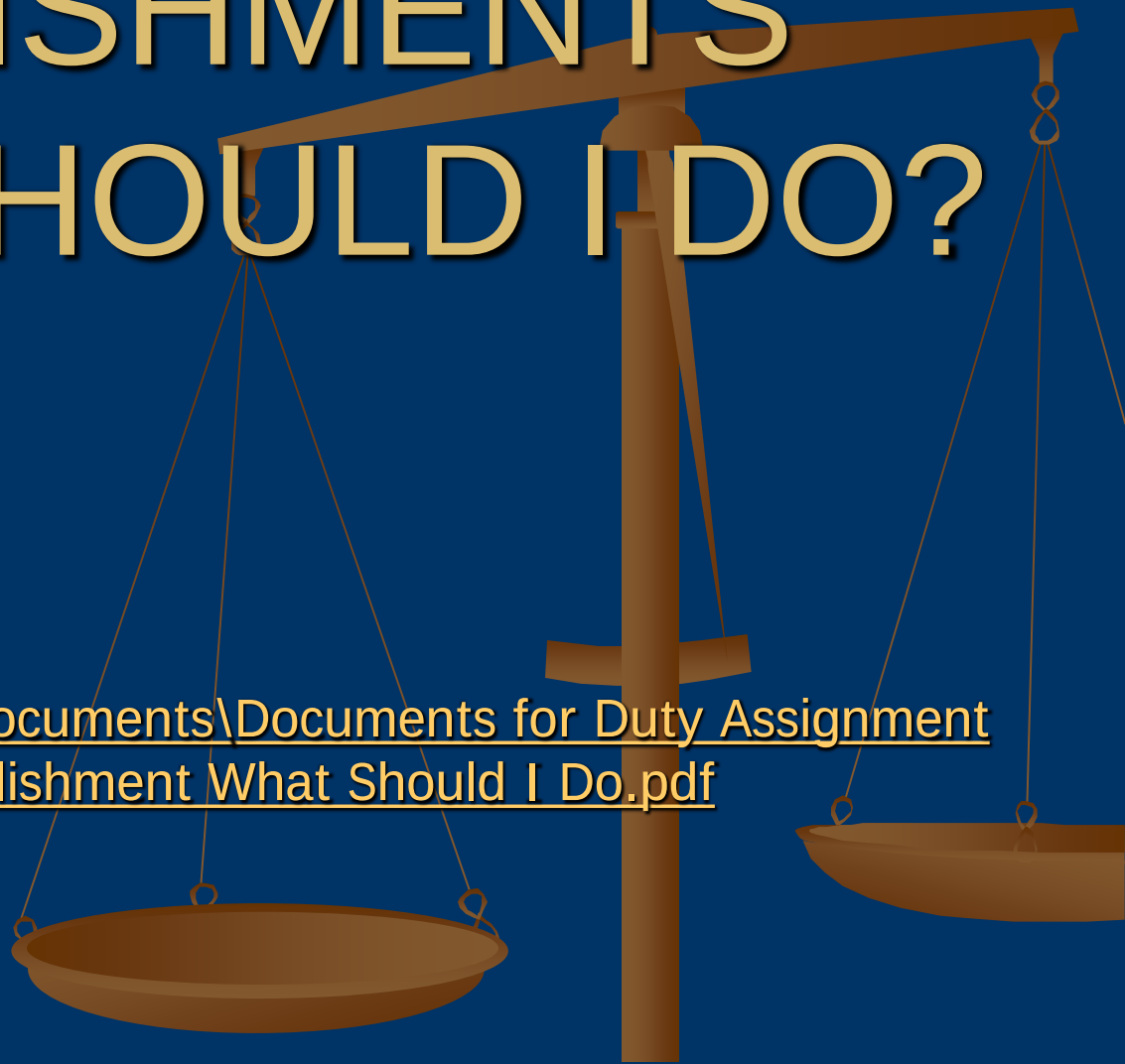


Reversions and Abolishments

- The hours worked by the PSE(s) used for the MDAT report do not have to match exactly to the schedule of the duty assignment that is being reverted.
- As per Article 37.3.A.4, the duty assignment can be reposted with a schedule that is different from the original schedule of the duty assignment.

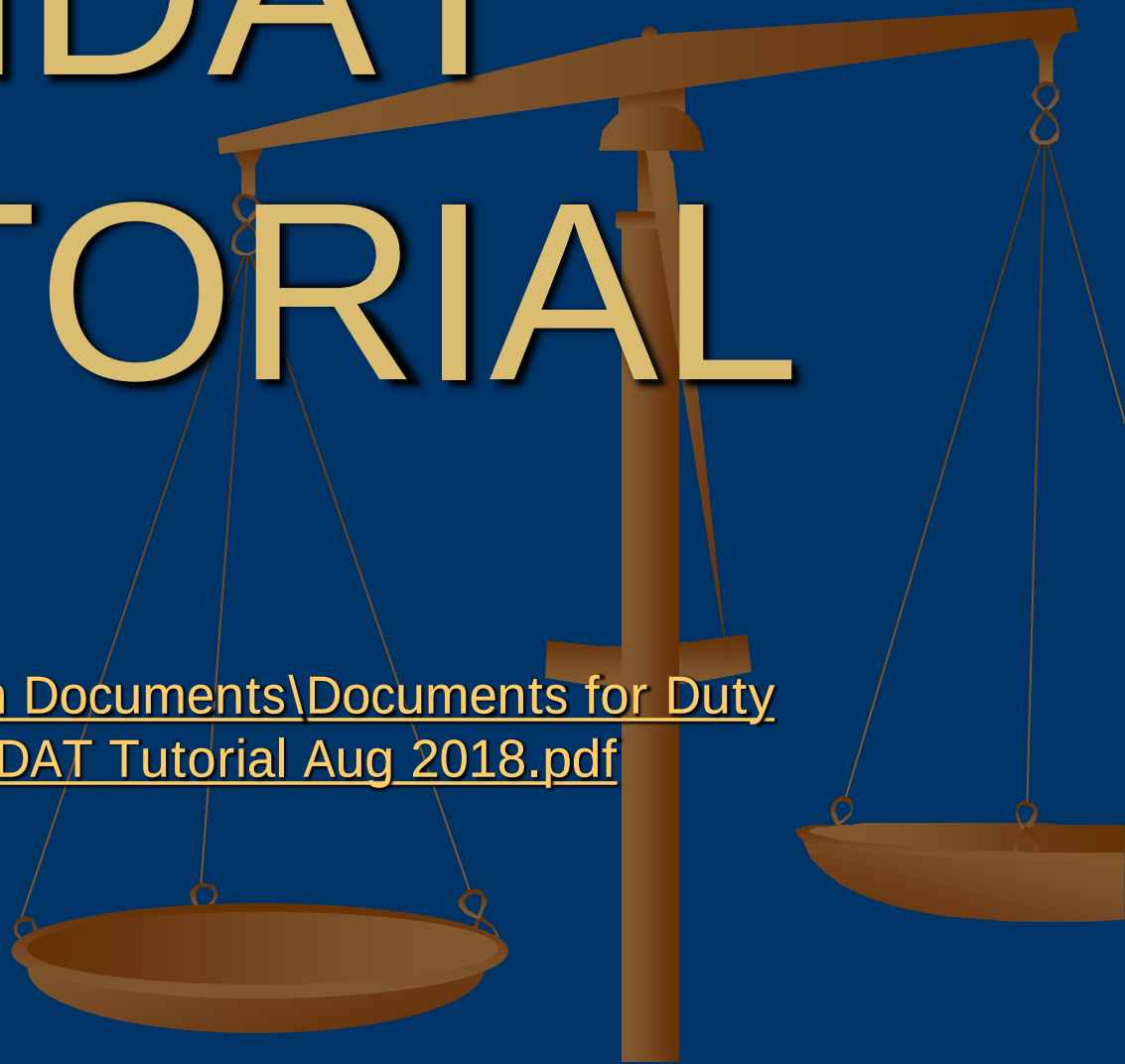


REVERSIONS AND ABOLISHMENTS WHAT SHOULD I DO?



2022 National Convention Documents\Documents for Duty Assignment and MDAT\Reversion or Abolishment What Should I Do.pdf

MDAT TUTORIAL



- 2022 National Convention Documents\Documents for Duty Assignment and MDAT\MDAT Tutorial Aug 2018.pdf

DUTY ASSIGNMENT CHECKLIST WITH SUPPORTING DOCUMENTS



- 2022 National Convention Documents\Documents for Duty Assignment and MDAT\Duty Assignment Checklist Documents\(1) Duty Assignment Checklist 10-1-2021.pdf

THANK YOU

BE SAFE

IN UNION SOLIDARITY,

THE STRUGGLE CONTINUES

